PLANNING &
DEVELOPMENT
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MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Seth Lloyd, AICP
Subject: PLTA-26-5 / Creating Sections 1.1.8, 1.1.9, and 5.8.9, and Amending Sections 1.4.3, 4.5.3, and 4.5.4 of the UDC – relevant to construction and site preparation
Date: October 26, 2026

Background:

The item for consideration is a UDC Text Amendment. This is approved by Ordinance. The proposed Governing Body review schedule is as follows:

- Introduction and Referral 10/26/2026
- Public Services Committee 11/2/2026
- Second reading 11/9/2026
- Public Services Committee 11/16/2026
- Third and final reading 11/23/2026

The intent of this ordinance is to set expectations for development projects generally, including bringing into code current policies. References to other codes are also included. The ordinance proposes adding 3 sections to the UDC and amending 3 others. A brief outline of the proposed amendments is below. The Staff Report sent to the Planning Commission is not included as the Planning Commission made multiple amendments and removed an entire proposed section from this submittal (postponing it until a later meeting). Including the original Staff Report may have caused confusion as to what is being proposed in the Ordinance.

1.1.8 Public Records; No Confidentiality Agreements

City Staff do not currently sign non-disclosure agreements nor withhold documents required to be released through a public records request. While there are some documents considered confidential by law, a majority of documents produced during development applications are not secret. The development office frequently posts general plans of proposed developments online so when construction starts, the public can get an idea of what is proposed at the site. The proposed section would not change how the City functions, it just demonstrates to the public and prospective developers what can and cannot be done by City staff.

1.1.9 Development Agreements

A section regarding development agreements similarly does not change City staff process. This proposed section demonstrates that development agreements are appropriate for more applications than just those stated in code, and that they all must be approved by City Council.

1.4.3 Defined Terms

Edits to Section 1.4.3 Defined Terms add definitions for 'discernable noise', Temporary Construction Use, and Workforce Accommodation Quarters. The code already uses the term 'discernable noise', and Staff already has been using a policy document defining what noise levels are 'discernable'. This amendment would codify the policy document with a few changes. The sound power levels are set based on Environmental Protection Agency and World Health Organization recommendations, along with consultation of acoustical engineers. The addition of Temporary Construction Uses is to add regulations found in the created 5.8.9. The creation of specific standards for Workforce Accommodation Quarters also necessitated a definition.

4.5.3 Water and Sanitary Sewer and 4.5.4 Utilities
The proposed language clarifies and codifies current policies. The Board of Public Utilities (BOPU) already requires infrastructure build-out, easements, and adequate capacity before approving development. The BOPU also takes steps to limit problematic discharges into the sewer system. The public do not always see what goes into these determinations. The codification of BOPU's current abilities will not change current development process substantively. Similarly, the section of code on utilities generally does not change much in the way of current processes, but clarifications are appropriate. For example, the current code does not specifically include 'site plan' in 4.5.4, but the review criteria of the site plan process would allow Staff to deny an application that does not have adequate utility systems.

5.8.9 Construction Uses
Construction uses have largely received a 'pass' in meeting zoning code requirements. Recent events (including on non-data center construction sites) have triggered the need to revisit the 'pass' construction has historically received, and confirm construction sites do not overly impact neighbors or the community. This was part of the 2026 UDC Annual Review workplan. The proposed code language would require new-construction site plans to submit documentation as part of their site plan application showing their construction plans. The proposed section also would define how a construction site may deviate from signage and lighting standards. Regarding lighting, temporary construction activities will be subject to the same shielding and light trespass limits required for permanent uses under the UDC. However, temporary fixtures are permitted to exceed standard height limits, allowing taller light poles to direct illumination downward and prevent off-site glare.

Planning Commission Recommendation:
The Planning Commission heard this item at their meeting on October 19, 2026 and recommended approval of the amendments (by a vote of 5-0), with the multiple modifications:

- Changes to sound power levels and time of day in the definition of 'discernable noise'
- Addition of a required 1,000-foot buffer in the definition of Workforce Accommodation Quarters
- Addition of required reporting of anticipated water use at time of site plan in gallons in the water and sewer section

Staff's analysis is that the buffer requirement for Workforce Accommodation Quarters is likely better placed in UDC 5.8.9.e as an added requirement for permitting.

Public Comment
As of the creation of this memo (October 21, 2026), Staff has received multiple inquires and comments from the public related to the proposed amendment. Comments received before or at the Planning Commission are attached after the Staff Report.

Attachments:

1. Ordinance
2. Redlined Ordinance
3. Planning Commission Changes Compared to Staff Original
4. Summary of EPA and WHO recommendations
5. Comments

APPROVED as to form only:
By John Brodie at 12:03 pm, Oct 21, 2026

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE CREATING SECTIONS 1.1.8, 1.1.9, AND 5.8.9; AND AMENDING SECTIONS 1.4.3, 4.5.3, AND 4.5.4 OF THE UNIFIED DEVELOPMENT CODE TO CLARIFY REQUIREMENTS AROUND ESTABLISHING USES, INCLUDING EXPECTATIONS FOR ALL CONSTRUCTION SITES."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the Governing Body of the City of Cheyenne finds that:

A. The text amendment that is the subject of this ordinance meets the criteria specified in Section 2.4.1.d of the Cheyenne Unified Development Code (UDC); and

B. These regulations are adopted under the City's zoning and police powers to protect the public health, safety, and welfare from impacts common to high-intensity industrial and energy-consuming uses and to all construction activity, including noise, water consumption and resource protection, utility and infrastructure demand, fire and hazardous-materials risk, emergency response, stormwater and construction-site impacts, and compatibility with surrounding properties; that the standards are generally applicable and based on objective criteria and are not intended to single out or inequitably burden any particular project, property owner, or industry; and that nothing in this ordinance waives, surrenders, or limits the City's legislative or police power. The regulations adopted are developed in consultation with currently-applicable codes and regulations, including those produced by the International Code Council, the United States Environmental Protection Agency, the Wyoming Department of Environmental Quality, and World Health Organization guidelines; and in consultation with engineers, plans reviewers, and site inspectors.

Section 2. That on October 19, 2026, the Planning Commission conducted a public hearing, reviewed the proposed text amendment, and recommended approval of said text amendment.

Section 3. That Section 1.1.8 of the UDC is created to read as follows:

1.1.8 Public Records; Confidentiality Agreements Prohibited

All correspondence, submittals, staff reports, and other records generated or received by City officials or staff in connection with a development application, development review, or other development action under these regulations are public records subject to disclosure in accordance with the Wyoming Public Records Act, Wyo. Stat. §§ 16-4-201 through 16-4-205. No City official or staff member may execute any agreement that purports to exempt records from, or to enlarge the exemptions of, the Wyoming Public Records Act beyond what that Act or other applicable law permits, and any such agreement is void to that extent. This section shall not prohibit the City from (a) withholding or protecting records, or portions of records, that are exempt or protected from disclosure under that Act or other applicable state or federal law, including trade secrets,

proprietary operational details, and critical infrastructure security information; or (b) agreeing to provide a submitter advance notice of a public records request and a reasonable opportunity to seek a protective order before disclosure. This section applies to records held by the City and does not alter the separate statutory authority of the Board of Public Utilities over records in its custody.

Section 4. That Section 1.1.9 of the UDC is created to read as follows:

1.1.9 Development Agreements

The City may, from time to time, enter into a development agreement with an applicant, property owner, or developer to establish an alternative process, alternative timeframe, or other alternative or supplemental means by which the requirements of this Code will be satisfied for a particular development, including but not limited to the agreements referenced in Sections 4.1.3.e, 4.2.4.b, and 4.5.6. A development agreement shall be consistent with the purposes and standards of these regulations, and is not effective unless and until approved by the City Council, in addition to any other approval specifically required elsewhere in this Code for that agreement. A development agreement may not waive, surrender, or limit the City's legislative or police power, including its authority to adopt and apply generally-applicable regulations necessary for the public health, safety, and welfare, and no development agreement is binding to the extent it purports to do so. A development agreement entered into on or after the effective date of this ordinance does not supersede or exempt a development from the requirements of this Code except to the extent this Code expressly authorizes an alternative or supplemental means of compliance, and any provision of such an agreement purporting to exempt a development from, or to override, an otherwise-applicable requirement of this Code is void to that extent.

Section 5. That Section 1.4.3 of the UDC is amended to add the following definitions and read as shown in Exhibit A, which is attached hereto and incorporated herein.

Discernable Noise. For the purposes of uses classified as industrial, or for non-industrial uses that consistently run on-site machinery, "discernable noise" at the property line shall be measured at each residential property line where anticipated sound power level is greater than 35dBA or greater than 55dBC. Noise levels exceeding the thresholds identified in Table 1-2 shall be deemed "discernable". If there is a complaint against a site that it is alleged to be producing discernable noise, the site owner or occupant shall provide evidence the site is at or below the sound thresholds provided in Table 1-2 by measuring noise with a sound-level meter meeting ANSI S1.4 Type 1 or Type 2 specifications at the affected property line. The measurement shall be at a height of five (5) feet from the ground, as an energy-equivalent level (L-eq) averaged over a five (5) minute period. Any of the following shall also be classified as "discernable noise" at the property line:

Table 1-2: Discernable Noise Thresholds		
Adjacent Zone (and Qualifying Conditions)	**Daytime Limits (7:00 a.m. to 9:00 p.m.)**	**Nighttime (9:00 p.m. to 7:00 a.m.)**
City Zone Districts excepting Residential Use: AG, CB, BP, P, LI, HI, non-residential PUDs	65 dBA	60 dBA
Unincorporated County Zone Districts excepting Residential Use: CB, LI, HI, P, MU, non-residential PUDs, LU tracts over 10 acres (undeveloped/agricultural), LU tracts developed with utility or non-residential uses	65 dBA	60 dBA
All Other Zone Districts including residential use	45 dBA	40 dBA
All Zoning Districts	65 dBC	60 dBC

a. Any consistent sound where the dBC measurement exceeds the dBA measurement by 20db or more.
b. Any short burst of sound exceeding the limitations imposed under chapter 8.56, Noise Control, of municipal code.

Temporary Construction Use. A use, structure, or activity established to support construction, including but not limited to construction trailers, equipment and material storage yards, staging areas, temporary parking for construction personnel, and concrete or asphalt batch plants serving the project, which is authorized for a limited period tied to the duration of an active building or site permit and is removed upon completion of construction or expiration of the permit, whichever occurs first.

Workforce Accommodation Quarters. Temporary, residential and supporting facilities permitted strictly in conjunction with an active development project to accommodate construction personnel. These quarters provide modular housing, RV sites with utility hookups, and resident-only amenities, including, but not limited to, centralized dining, laundry, wellness, recreation, administrative offices, security, shuttle services, and necessary utility infrastructure. Workforce Accommodation Quarters are authorized only for the duration of an active building or site permit for the associated development project and shall be removed upon completion of construction or

expiration of the permit, whichever occurs first. The accommodations shall be at least 1,000 feet from any school, church, or residential area.

Section 6. That Section 4.5.3 of the UDC is amended to read as follows:

4.5.3 Water and Sanitary Sewer

Approval of any plat or site plan shall be contingent upon a demonstration of adequate water and sanitary sewer utility systems and easements and adequate water and sanitary sewer capacity to service the proposed development. Site plan shall include estimated monthly water usage in gallons. All developments shall comply with the Cheyenne Board of Public Utility (BOPU) adopted standards, specifications, and design criteria to protect the health and safety of the community through the continued performance of the water and sanitary sewer systems and facilities. Public water, sanitary sewers, and fire hydrants shall be designed and constructed in accordance with the City of Cheyenne and BOPU Construction Specifications and Standard Drawings, BOPU Infrastructure Policies and Design Criteria, and the International Fire Code, each as adopted by the City and in effect on the effective date of this ordinance and including later amendments or editions once separately adopted by the City. Facilities shall also be built in accordance with the applicable Wyoming Department of Environmental Quality requirements for water and sewerage systems.

Section 7. That Section 4.5.4 of the UDC is amended to read as follows:

4.5.4 Utilities

Approval of any plat or site plan shall be contingent upon a demonstration of adequate utility systems and easements. Approval shall also be contingent on adequate utility capacity to service the proposed development. New development shall be required to pay all costs related to construction for required system improvements. A statement from the appropriate utility company regarding the ability to provide services may be required. All utilities including gas, electric, power, telecommunication, and cable shall be located underground and placed in the public right-of-way or alleys wherever possible, except to the extent such placement is governed by the exclusive jurisdiction of the Wyoming Public Service Commission or by a utility's applicable tariff or engineering requirements. Nothing in this section authorizes the City to regulate the facilities, routing, or service of any public utility subject to the jurisdiction of the Wyoming Public Service Commission. High-voltage primary electric transmission lines, sub-transmission lines, and associated utility equipment are exempt from this undergrounding requirement. If placing the utilities in such locations is not practical, possible, permitted, or would require compromising the planning and community design standards of other sections in this Article, easements shall be provided for utilities. Landscape and utility plans shall be coordinated according to the Streetscape Design, Planning, and Maintenance Guidelines in Appendix G, Section G-4.

Section 8. That Section 5.8.9 of the UDC is created to read as follows:

5.8.9 Temporary Construction Use

a. ***Generally.*** Construction uses on private property that are temporary in nature and do not qualify as a Temporary Use pursuant to section 2.2.6 of this code shall be subject to the regulations of this section. Construction activities are generally exempt from the strict application of the UDC, except as outlined in this section.

b. ***General Standards.*** All construction sites shall meet the following standards.

1. *Utilities*. Commencement of temporary site operations shall be contingent upon demonstrating that adequate public or private utility connections (including water, power, and sanitary facilities) and adequate fire protection are available to serve the site pursuant to section 4.5.4 (Utilities) of this code.
2. *Right-of-way Permit*. All construction sites shall submit for a right-of-way permit in accordance with City rules and regulations. Access locations and number shall be reviewed and approved with this permit.
3. *Grading*. All sites moving 50 cubic yards or more of dirt shall be required to obtain a grading permit from the City Engineer through applicable city processes.
4. *Tracking*. All sites shall take proper measures to prevent tracking of dirt, gravel or debris into the public right-of-way.
5. *Hazardous Materials and Fuel Storage*. Temporary storage and dispensing of fuel, flammable or combustible liquids, compressed gases, and other hazardous materials on construction sites shall comply with the International Fire Code.
6. *Trench and Confined Space Operations*. Trenching, excavation, and confined space operations shall comply with 29 CFR 1926 Subpart P (Excavations) and Subpart AA (Confined Spaces in Construction).
7. *Lighting*. All temporary site lighting must be fully shielded, directed downward to cap light trespass at 0.5 foot-candles at property lines. Light fixtures may exceed the height regulations of section 6.4 of this code provided they meet the requirements of this subsection.
8. *Signage*. All temporary construction sites shall comply with non-residential zoning sign regulations. Perimeter fence wraps used for visual screening are exempt from standard sign area limitations, provided any printed copy is limited to non-commercial messaging, project renderings or descriptions of the anticipated site development, or identification of active project contractors and design teams. Mandatory safety, OSHA, labor law, and federal/state compliance postings are fully exempt from sign regulations and permit requirements.

c. ***Small off-site construction-related areas.*** In addition to meeting general Temporary Construction Use standards, construction staging areas off of the premises under construction and less than 1 acre shall meet the following requirements:

1. Site Layout. A layout of the construction staging area and temporary construction use locations shall be submitted as part of the site plan for the primary site, or as a standalone site plan. Submittals shall include the information required by 5.8.9.g. Modification to the layout shall be approved prior to modification of a construction staging area or temporary construction use.
2. Buffers and Screening. All site activities, machinery, and material storage must maintain a minimum setback from adjacent residential lot lines of ten (10) feet. All

construction sites must be screened from rights-of-way with a temporary fence with wrap, unless the site and all properties within 200 feet are in the LI, HI, or BP zone.

3. Reclamation. A plan for reclamation for the site shall be presented with the site layout. Prior to permit issuance, the applicant shall submit financial security (performance bond, irrevocable letter of credit, or cash escrow) in an amount equal to 125% of an engineer's estimated cost for site cleanup, regrading, and re-vegetation to guarantee faithful completion of site reclamation.

d. ***Large-scale Construction Sites.*** In addition to meeting general Temporary Construction Use standards, construction sites with a development footprint of five (5) acres or more, and construction staging areas off of the premises under construction which are one (1) acre or more, shall meet the following requirements:

1. *Site Layout.* A layout of the construction staging area shall be submitted and approved prior to initiation of the temporary construction use.. Submittals shall include the information required by 5.8.9.g.
2. *Buffers and Screening.* All site activities, machinery, and material storage must maintain a minimum setback from adjacent residential lot lines of fifty (50) feet. This setback does not apply to active construction work on buildings or other site elements approved by the approved plans to be within 50' of the property line. All construction sites must be screened from rights-of-way with a temporary fence with wrap, unless the site and all properties within 200 feet are in the LI, HI, or BP zone.
3. *Wyoming Pollution Discharge Elimination System (WYPDES).* In accordance with WYPEDS requirements, the site shall maintain dust control, stormwater pollution prevention, air quality control, hazardous material storage, and traffic and access management. Water usage for dust control may be limited under water shortage conditions.
4. *Significant Traffic Impact.* Construction sites anticipated to have more than 100 employees on the site at one time shall submit a traffic impact study in compliance with chapter 3.1 of this code. Traffic impact studies shall not assume control over employee's access to a site, unless onsite housing or company vehicles are provided to get employees to the site.

e. ***Relationship to Zone District.*** Onsite temporary construction uses and their associated ancillary facilities, except for Workforce Accommodation Quarters, are permitted in all zoning districts upon issuance of an approved building permit, regardless of primary district land use restrictions. Offsite temporary construction uses and Workforce Accommodation Quarters shall require approval in accordance with section 2.2.4, Conditional Use, of this code in all zone districts other than BP, LI, and HI.

f. ***Site Reclamation and Financial Security.*** Within sixty (60) calendar days following completion of construction operations or permit expiration, all temporary structures, equipment, gravel pads, stockpiles, and waste associated with the Temporary Construction Use shall be removed, and the site restored to its original condition, reclaimed, or developed in accordance with approved site plan; however, if seasonal conditions prevent immediate planting, the Director may grant an extension of up to one hundred and eighty (180) days to complete the reclamation. For offsite Temporary Construction Uses, prior to permit issuance, the applicant shall submit financial security (performance bond, irrevocable letter of credit, or cash escrow) in an amount equal to 125% of an engineer's

estimated cost for site cleanup, regrading, and re-vegetation to guarantee faithful completion of site reclamation.

g. ***Construction Site Layout Submittal Requirements.*** If a layout of the construction staging area is required, the following information shall be included:

1. A site layout drawn to scale detailing the following shall be submitted:
    i. Property boundaries, existing structures, and adjacent land uses;
    ii. Location and footprint of temporary structures, staging areas, heavy equipment yards, and stockpile areas;
    iii. Proposed vehicular access points, internal circulation routes, parking areas, and staging areas;
    iv. Placement and specifications of temporary perimeter screening, lighting, and dust suppression measures; and
    v. A detailed site restoration plan.
2. A narrative detailing how the temporary construction use will address each applicable standard in UDC 5.8.9.b-f, above.
3. The site layout shall be kept current throughout the temporary construction use. An updated site layout shall be submitted to the Planning Department and the Fire Department:
    i. Within seven (7) days of any change to vehicular access points, internal circulation routes, fire apparatus access, or staging areas; and
    ii. At any other time upon request of the Planning Department or the Fire Department. Changes to fire apparatus access shall not be implemented until approved by the Fire Marshal's Office.

h. ***Exceptions.***

1. Exceptions to this section shall be processed under the procedure for a Subdivision Standards Waiver.
2. Relationship to Development Agreements. Where a development agreement approved by the City Council before January 1, 2027, establishes construction hours, phasing, or related terms for a specific project, those terms govern to the extent of any conflict with this section. A development agreement approved on or after January 1, 2027, does not override this section except to the extent this Code expressly authorizes an alternative or supplemental means of compliance.

Section 9. Sections, paragraphs, sentences, clauses, and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional or otherwise unlawful, such declaration shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 10. This ordinance shall be in full force and effect upon approval and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

_____
PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

_____
KYLIE SODEN, CITY CLERK

Published:_____
Wyoming Tribune-Eagle

EXHIBIT A

Changes to UDC 1.4.3 in context

1.4.3 Defined Terms.

All words and phrases shall have their ordinary and customary meanings unless the context of the word or phrase indicates otherwise. The following terms shall have the meaning given below, unless the context of the use of the term clearly indicates otherwise based on the Purposes, Intent, Design Objective or other guidance associated with its use in a particular section.

Abutting. A description of proximity where two elements share a common boundary.

Access Point. A driveway, internal access street or similar vehicular entrance or exit to the interior of a block, lot or parcel from a street.

Accessory Use. A subordinate use, clearly incidental and related to the principal use and located on the same property.

Activity Center. Places where economic and social activity are focused. In addition, where the code specifically references PlanCheyenne or references specific types of activity centers described in PlanCheyenne the additional guidance in the Plan may be used to determine the context or applicability of a particular standard.

Adjacent. A description of the proximity of two elements which includes abutting and any surrounding vicinity where the impacts described could be reasonably assumed to extend.

Alley. A low capacity, low speed and minor street or access way typically located on the rear or side of properties and used for access to parking, service areas, accessory buildings or easements and not intended for through traffic.

Antenna. Any exterior transmitting or receiving communication device mounted on a tower, building or structure and used in communications that radiate or capture electromagnetic waves, digital signals, analog signals, radio frequencies (excluding radar signals), wireless telecommunications signals or other communication signals.

Appeal. A written request for a review of any final action or decision allowed by the provisions of this Title.

Applicant. Any person(s), firm, corporation or entity requesting permission or desiring to officially apply for any action regulated by this Title.

Average Daily Traffic (ADT). The total volume of vehicles during a given time period (in whole days greater than one day and less than one year) divided by the number of days in that time period.

Awning. A shelter constructed of non-rigid materials along windows and sidewalks at the first story of a building, and mounted on a supporting framework projecting from and supported by the exterior wall of a building.

Base Flood Elevation. The elevation of the flood having a one percent chance of being equaled or exceeded in any given year.

Berm. A mound of earth designed to provide a screen.

Best Management Practice. A technique, process, activity, or structure used to reduce pollutant discharges in stormwater. BMPs include source control practices (non-structural BMPs) and engineered structures designed to treat runoff. BMPs are most effective when used in combination and selected and designed based on site-specific characteristics.

Bicycle Route. A portion of a system of bikeways designated by appropriate route markers which can be a bicycle trail or bikeway.

Bicycle Trail. A trail or path separated from motor vehicles and designated exclusively for bicycles or shared by bicycles and pedestrians.

Bikeway. A street designed to incorporate bicycle travel through either shared vehicle / bicycle lanes or designated bicycle lanes.

Billboard. A sign structure advertising an establishment, a message, merchandise, service or entertainment which is not located, sold, produced, manufactured or furnished at the property on which the sign is located. Billboard includes Digital Billboard as defined in this code.

Blinking. A form of flashing where the pattern of sudden illumination changes occurs with more than 2 on-off cycles per second.

Block. An area of land that is entirely bounded by streets or other boundary permitted by these regulations where streets are not appropriate based on the context.

Block Frontage. The side or sides of a block that the majority of the lots or tracts face.

BMP Maintenance. Routinely scheduled activities, as well as non-routine repairs that may be required after large storms, or as a result of other unforeseen problems, as necessary to ensure proper BMP function.

Building. Any structure used or intended for supporting or sheltering any use or occupancy.

Building, Accessory. A detached, subordinate structure, the use of which is clearly incidental and related to that of the principal building or use of the land, and which is located on the same property as that of the principal structure or use.

Building, Attached. A building having one or more party walls in common with an adjacent building.

Building, Detached. A building having no common wall or structural attachment with another building.

Building, Existing. A building erected prior to the adoption of the ordinance codified in this Title, or prior to the effective date of a provision in this Title, whichever is earlier, or one for which a building permit has been issued, or erected in accordance with this code after its adoption.

Building, Nonconforming. A building existing or one for which a building permit has been issued at the time of the adoption of this code which does not comply with the regulations of the zoning district in which the building is located.

Building, Principal. A building in which is conducted the main or principal use of the property on which the building is situated.

Canopy. A shelter constructed of rigid materials covered with fabric, metal or other material, along windows and sidewalks at the first story of a building, and projecting from the exterior wall, which

may be freestanding or supported by a building at one or more points and by columns or posts embedded in the ground at other points.

Caretaker Unit. One or more living quarters or lodging facilities located within a non-residential building for the use of employees of the use. A Caretaker Unit shall not be considered a 'residential use' or 'residential unit' for the purposes of this code but shall be considered part of the non-residential square footage for the purposes of the code. The combined square footage of all Caretaker Units shall not comprise more than ten (10) percent of the principal use's building square footage (should dwelling area exceed this amount, the living area shall be determined to be a "Mixed-use Dwelling" and a residential use for the purposes of this code). A Caretaker Unit is allowed as part of the approval of the principal use without any more restrictive approval process than that warranted for the principal use.

Certificate of Compliance. A certificate issued by the Development Office which indicates that the site plan requirements have been met.

Changeable Sign. A sign whose informational content can be changed or altered by manual, electric, electromechanical or electronic means. Changeable signs do not include Digital Billboards as defined in this code.

Change of Use. Change of use constitutes at least one of the following:

1. The proposed use is appreciably different than the current use;
2. There is an increase in the size of the existing building or extent of the use of the land;
3. The use is permitted in the zoning district in which the use is located, but requires more parking than the previous use;
4. The number of vehicle trips generated by the new use is or will be greater than the number of vehicle trips generated by the previous use as determined by the Institute of Transportation Engineers Trip Generation, latest edition;
5. The amount of stormwater runoff or impervious (to drainage) surface area will be increased with the new use.

Channel. A natural or artificial watercourse with a definite bed and banks that conveys continuously or periodically flowing water. Interchangeable terms include creek, drainageway, river, stream, and watercourse.

City Engineer. The City of Cheyenne City Engineer, his designated representative or the City Engineering Department.

Comprehensive Plan. The general plan for land use, transportation, utilities, annexation, and community facilities prepared and maintained by the Commission, and any other more specific plan, program or policy prepared under the guidance of that plan.

Construction, New. Structures for which the construction commenced on or after the effective date of the ordinance codified in this Title.

Construction, Start of. The first placement of permanent construction of a structure (other than a manufactured home), such as the excavation of footings or foundations, or the pouring of slabs or foundations. Permanent construction does not include land preparation, such as clearing, grading and filling, nor does it include the installation of streets and/or sidewalks. For a structure (other than a manufactured home) without a basement or poured footings, the "start of construction" includes the first permanent framing or assembly of the structure or any part thereof on its piling

or foundation. For manufactured home not within a manufactured home park or subdivision, "start of construction" means the affixing of the manufactured home to its permanent site. For manufactured home within manufactured home parks or manufactured home subdivisions, "start of construction" is the date on which the structure is to be affixed.

Corner lot. See "Lot, corner."

Crosswalk. Any portion of a roadway distinctly indicated for pedestrian crossing.

Cul-de-sac. A short dead-end street terminating with a vehicular turn-around area.

Curb Radii. The curved or flared portion of a street curb at driveway approaches or intersections.

Decorative Fence. A fence constructed out of materials such as wood, stone, or metal, or a combination thereof, primarily for aesthetic purposes to enhance the appearance of a property and generally not obstructing the visibility into or out of a property. A decorative fence shall not include chain link, wire, snow fences, or a standard wooden or vinyl privacy fences

Detention. The temporary storage of storm runoff in a stormwater management facility with the goals of controlling peak discharge rates and providing gravity settling of pollutants.

Detention Facility. A detention basin or alternative structure designed for the purpose of temporary storage of stream flow or surface runoff and gradual release of stored water at controlled rates.

Developer. The owner of land proposed for development, or the owner's authorized representative, or any person who causes the following to take place either directly or indirectly: division of property for the purpose of development; sells, leases or develops property, or offers or advertises or otherwise engages in business for the same; or has control or is controlled in such a way to have influence in any of the above.

Development. Any man-made change to real estate, including, but not limited to, the construction of buildings or other structures, mining, dredging, filling, grading, paving, excavation or drilling.

Development Footprint. The development footprint is the total land area that is permanently affected by development activities, and includes buildings, structures, hardscape, utilities, roads and parking areas, maneuvering areas, storage areas, areas associated with the use on the property, and areas cleared of natural vegetation and topsoil.

Digital Billboard. A billboard displaying static images controlled by electronic communications.

Discernable Noise. For the purposes of uses classified as industrial, or for non-industrial uses that consistently run on-site machinery, "discernable noise" at the property line shall be measured at each residential property line where anticipated sound power level is greater than 35dBA or greater than 55dBC. Noise levels exceeding the thresholds identified in Table 1-2 shall be deemed "discernable". If there is a complaint against a site that it is alleged to be producing discernable noise, the site owner or occupant shall provide evidence the site is at or below the sound thresholds provided in Table 1-2 by measuring noise with a sound-level meter meeting ANSI S1.4 Type 1 or Type 2 specifications at the affected property line. The measurement shall be at a height of five (5) feet from the ground, as an energy-equivalent level (L-eq) averaged over a five (5) minute period. Any of the following shall also be classified as "discernable noise" at the property line:

Table 1-2: Discernable Noise Thresholds

Adjacent Zone (and Qualifying Conditions)	**Daytime Limits (7:00 a.m. to 9:00 p.m.)**	**Nighttime (9:00 p.m. to 7:00 a.m.)**
City Zone Districts excepting Residential Use: AG, CB, BP, P, LI, HI, non-residential PUDs	65 dBA	60 dBA
Unincorporated County Zone Districts excepting Residential Use: CB, LI, HI, P, MU, non-residential PUDs, LU tracts over 10 acres (undeveloped/agricultural), LU tracts developed with utility or non-residential uses	65 dBA	60 dBA
All Other Zone Districts including residential use	45 dBA	40 dBA
All Zoning Districts	65 dBC	60 dBC

a. Any consistent sound where the dBC measurement exceeds the dBA measurement by 20db or more.
b. Any short burst of sound exceeding the limitations imposed under chapter 8.56, Noise Control, of municipal code.

Dissolve. A transition between digital messages that is achieved with varying light intensity and where the first message gradually appears to dissipate and loses legibility simultaneous to the gradual appearance and legibility of the subsequent message.

Double frontage lot. See "Lot, double frontage."

Drive-in or Drive-up Facility. A portion of an establishment designed for retail or service to persons in automobiles, including a driveway approach, order facilities, signs and delivery windows.

Driveway. A vehicle access way located on private property.

Driveway Approach. A constructed vehicle access point within the right-of-way between the roadway and the adjacent property line.

Dwelling Unit. One or more rooms which are intended for human occupancy as a place of residence with facilities for living, cooking and eating for one family unit, manifesting around one single kitchen, excluding wet bars with no stove or range, and one single laundry facility. Cooking facilities and other accommodations, such as laundry, should be accessible to all occupants of the dwelling through internally connected spaces.

Easement. A permanent or temporary grant of right by a property owner to the public, a corporation or other person(s) for the use of a strip or parcel of land for specified purposes. Ownership shall remain with the property owner.

Electrical Sign. A sign or sign structure in which electrical wiring, connections or fixtures are used. Electrical sign does not include a digital billboard as defined in this section.

Fade. A transition between static message displays that is achieved with varying light intensity and where the first message gradually loses light intensity to the point of not being legible and the subsequent message gradually increases intensity to the point of legibility.

Family Unit. One or more persons who are related by blood, marriage, domestic partnership or legal adoption living together as a single household; or a group of not more than four (4) persons not related by blood, marriage, domestic partnership or legal adoption, living together as a single household.

Fence. A man-made partition, structure, wall or a gate erected as a dividing marker, barrier, enclosure or screening device.

Flag. A sign made of fabric or other non-rigid material with no enclosing framework containing distinctive colors, patterns, or symbols, used as identification for or a symbol of a government, political subdivision, or other entity.

Flashing. A pattern of changing light illumination where the sign illumination alternates suddenly between fully illuminated and fully non-illuminated in a time frame of less than 4 seconds.

Floor Area Ratio (FAR). The total square feet of the building divided by the total square feet of the lot the building is located on.

Foot Candle. A unit of illuminance equal to 1 lumen, uniformly incident upon an area of 1 square foot.

Freeboard. A factor of safety usually expressed in feet above a flood level for purposes of floodplain management. Freeboard compensates for the many unknown factors that could contribute to flood heights greater than the height calculated for the design flood.

Functional turf grass. An area of living turf grass or lawn that is used regularly for human recreational purposes or domestic animal use. Functional turf grass or lawns include Kentucky bluegrasses, fescues, or similar sod-forming grasses requiring ½ inch or more of supplemental watering per week during hot, dry periods.

Garage. A building or portions of a building for the storage of automobiles or other property, accessory to the principle use of the site.

Greenway. A linear open space established along either a natural corridor, such as a stream valley, or overland along a road or railroad right-of-way converted to recreational use; a natural or landscaped course prepared for pedestrian or bicycle passage; certain designated strips or linear parks and open spaces connected and designated by the City as part of the Greenway System.

Height. When referring to a tower or other structure, height is the distance measured from the finished grade of the parcel to the highest point on the tower or other structure, including the base pad and any antenna.

High-power Transmission Lines. Transmission lines which carry sixty-nine thousand (69,000) volts or more.

Immediate. A transition between static message displays that is achieved in 2 seconds or less.

Impoundment Yard. A fenced yard or enclosed area where storage of vehicles seized by, and in the custody of, a government agency, are stored for retrieval by the vehicle owner or are sold by proper means by the agency.

Improvement. Buildings, structures and all facilities of a public nature indented for public use – including streets, sidewalks, curbs, gutters, alleys and other public ways, parks, recreational facilities, water, sewage, solid waste disposal and other sanitary systems and facilities.

Infill Development. For commercial or residential parcels shall be defined by the following criteria:

1. One parcel surrounded by urban development on at least three sides (does not have to be directly adjacent to); and
2. Served by existing underground sewer and water utilities.

Infiltration. The process of percolating stormwater into the subsoil.

Interior lot. See "Lot, interior."

Intermittent. A pattern of changing light intensity, other than that achieved with immediate, fade or dissolve transitions, where any message remains static for over 4 seconds.

Intersection. The junction of two streets.

Land Disturbance Activity. Grading, digging, cutting, scraping, or excavating of soil, placement of fill materials, paving, construction, substantial removal of vegetation, or any activity which bares soil or rock or involves the diversion or piping of any natural or man-made watercourse.

Landscape Points System. The point system used for determining the minimum vegetation requirement.

Landscaped Setback. The minimum required landscaping area on private or government-owned property which is adjacent to a property line common to a street right-of-way. Driveways and sidewalks to afford required access shall be allowed to interrupt this required space.

Landscape, Street Tree Area. The landscaped area between property line and the street, within the right-of-way.

Landscaping. Any combination of living plants, such as trees, shrubs, vines, ground covers, flowers or grass; natural features, such as rock, stone, bark chips or shavings; and structural features, including, but not limited to, fountains, reflecting pools, outside art work, screen walls, fences or benches.

Landscaping, Internal. That area that lies within the property lines not covered by buildings, parking, outside storage, sidewalks and driveways.

Landscaping, Xeriscape. A water-saving landscape design that limits turf areas, utilizes mulches, efficient irrigation (often drip or subsurface) and use of native or drought-tolerant plant materials. When done properly, it is as lush and green as traditional landscapes, but has the benefits of lower water use and less maintenance after establishment.

Loading Space. n on- or off-street space for the standing, loading, and unloading of vehicles, people or articles.

Lot. A designated unit of land established by a plat or otherwise as permitted by law, for the transfer of ownership or to be used, developed, or built upon, whether immediate or future.

Low Impact Development (LID). An approach to land development (or redevelopment) that works with nature to manage stormwater as close to its source as possible. LID emphasizes conservation and use of on-site natural features to protect water quality. This approach implements engineered small-scale hydrologic controls to mimic the pre-development hydrologic regime of watersheds through infiltrating, filtering, storing, evaporating, and detaining runoff. The term Green Infrastructure may also be used.

Major Drainageway. Any drainage flow path mapped with an area of special flood hazard on the Flood Insurance Rate Map (FIRM).

Manufactured Home. A structure transportable in one or more sections which, in the traveling mode, is 8 body feet or more in width or 40 body feet or more in length or, when erected on site, is 320 or more square feet, and which is built on a permanent chassis and designed to be used as a dwelling with or without a permanent foundation when connected to the required utilities, and includes the plumbing, heating, air-conditioning and electrical systems contained therein; except that such term shall include any structure which meets all the requirements of this paragraph except the size requirements and with respect to which the manufacturer voluntarily files a certification required by the secretary (HUD) and complies with the standards established by HUD. For manufactured homes built prior to June 15, 1976, a label certifying compliance to the standard for mobile homes, NFPA 501, ANSI 119.1, in effect at the time of manufacture is required.

Massage Therapy. A medical service that emphasizes the therapeutic benefits of massage, aiming to address specific health concerns and practiced by a person who holds a massage therapist permit pursuant to chapter 5.52, title 5, of the city code.

Moving Light. The physical change in position of any visible illumination source while lighted or the simulation of movement achieves with a pattern of sequentially illuminating visible illumination sources within close proximity to each other.

MS4 Permit. A state or federal stormwater discharge permit to regulate discharges from municipal separate storm sewer systems (MS4s) for compliance with Clean Water Act regulations; used interchangeably with the term National Pollutant Discharge Elimination System (NPDES) permit and collectively referred to as federal stormwater discharge permit.

Nonfunctional turf grass. An area of living turf grass or lawn that is not used regularly for human recreational purposes or domestic animal use. Nonfunctional turf grass or lawns include Kentucky bluegrasses, fescues, or similar sod-forming grasses requiring ½ inch or more of supplemental watering per week during hot, dry periods.

Nonpoint Source Pollution. Pollution from any source other than from any discernible, confined, and discrete conveyances, and shall include, but not be limited to, pollutants from agricultural, silvicultural, mining, construction, subsurface disposal and urban runoff sources.

Off-premise Sign. Any sign not identified as a "Billboard" and which is used for the purpose of displaying, advertising, identifying, or directing attention to a business, service, activity or place,

including products or services sold or offered for sale, on premises other than the premises where such sign is displayed.

Open Space Systems. A system of various types of outdoor space, designed to function as aesthetic, recreation, and ecological support for development. Elements of the open space system can include private, common, or public open spaces.

Owner. The owner of record of a parcel of land, as recorded in the office of the county clerk.

Parapet. The architectural enhancement in the design of the façade that extends ornamental details above a roof line to the extent necessary to screen the roof and roof-top equipment.

Parcel. A contiguous unit of land owned and recorded as the property of the same persons or controlled by a single entity.

Parking Lot. An area other than a street or alley designated for the parking of five or more motor vehicles.

Parking Space. A space specially designed for the parking of a motor vehicle.

Party Wall. A wall common to two or more units which are intended to be individually owned.

Pedestrian. A person on foot or a self-propelled conveyance intended for use of persons with physical impairments.

Person. An individual, firm, corporation, partnership, or association, or any combination of these, or any other legal or commercial entity acting as a unit.

Pre-existing Towers and Pre-existing Antennas. Any tower or antenna for which a building permit or wireless telecommunications permit (WTP) was issued prior to the effective date of this Title, including permitted towers or antennas that have not yet been constructed so long as such approval is current and not expired.

Public Drainage System. The system of storm sewers, channels, culverts, creeks, flows within public streets, and associated detention and water quality structures owned and maintained by the City of Cheyenne, Laramie County, or the Wyoming Department of Transportation.

Public Land. Land owned, controlled and/or operated by a governmental unit.

Published Notice. A notice provided in accordance with Wyoming Statutes.

Recreational Vehicle (RV). A vehicle or unit primarily designed for human habitation for recreation or travel, which may include a motor home, camper, travel trailer, or park model recreational vehicle.

Redevelopment. The replacement of impervious surfaces on a developed site that is surrounded by urban development on at least three sides. Redevelopment occurs when the existing facilities are demolished and rebuilt or substantially changed through reconstruction. Resurfacing parking lots with no charge in overall dimensions or drainage patterns is not considered redevelopment even if the pavement is completely replaced.

Regional Detention Facilities. A system or parts of a system to control run-off from a defined area within a drainage basin and designed to coordinate with other similar facilities to manage the drainage basin and tributaries, typically considering areas greater than 100 acres or capacities of more than 30 acre-feet or as otherwise specified in a drainage master plan or current Storm Drainage Manual.

Remainder Lot. A lot or tract of land designated on a plat which is not eligible for development, or to service adjacent development, and may be reserved for future platting. A remainder lot shall not be for the purpose of sale, lease, or financing; nor be eligible for development. Remainder lots shall not be required to meet the dimensional standards of the zoning district. Developed properties, excluding land developed for agricultural purposes, are not eligible to be remainder lots. Remainder lot(s) must be referred to as "outlots", "remainder lots", or "tracts" on plats.

Right-of-way. Land dedicated and set aside for use by the public, primarily for the right of vehicle or pedestrian travel, but typically designed to include multiple and other public purposes.

Roadway. That portion of a street designed and intended primarily for vehicles.

Sanitary System. A sewer system or systems including mechanisms of collection, treatment and disposal of domestic and/or commercial sewage.

Screening. A feature used to visually separate elements on abutting or adjacent development sites.

Self-Contained Unit. A recreational vehicle equipped with its own water supply, sanitary facilities, and wastewater containment, capable of independent habitation.

Sidewalk. That portion of a street designed and intended primarily for use of pedestrians.

Sign. Any announcement, declaration, demonstration, display illustration or insignia, or other identification, that is visible from any public place or is located on private property and exposed to the public and that directs attention to a product, service, place, activity, person, institution, business or solicitation, including structures that exist to support or enhance the sign.

Sign, Animated. A sign that uses movement or change of lighting to depict action or create a special effect or scene.

Signs, Building Marker. A sign indicating the name of a building, a date and incidental information about its construction, cut into a masonry surface or made of bronze or other permanent material.

Sign, Abandoned. A sign which no longer identifies or advertises a bona fide business, service, owner, product, or activity, and/or for which no legal owner can be found.

Sign, Electronic Message Center. A sign where alphabetic, pictographic or symbolic informational content can be changed or altered on a fixed display surface composed of electrically illuminated or mechanically driven, changeable segments.

Sign, Government. A sign erected and maintained by the United States or state of Wyoming, or any political subdivision thereof, for traffic direction or for designation of or direction to any school, hospital, historical site or public service, property or facility.

Sign, Nameplate. A sign giving only the name, address and/or occupation of an occupant or group of occupants.

Sign, Portable. A sign not permanently attached to the ground or other permanent structure, or a sign designed to be transported, including, but not limited to, signs designed to be transported by means of wheels, signs converted to A- or T-frames, and balloons used as signs. "Portable sign" shall not include umbrellas used for advertising, signs carried by individuals, and signs attached to or painted on vehicles parked and visible from the public right-of-way when such vehicle is used in the normal day-to-day operations of a business.

Site Plan. A plan of the land showing the existing and proposed features for the property.

Static. Having no motion within a particular message or copy displayed on a digital billboard.

Storm Sewer. An underground pipe system that carries stormwater from streets and other surfaces and discharges directly to a pond, stream or river; used interchangeably with the term "storm drain."

Stormwater Management. Anything associated with the planning, construction, maintenance, or regulation of facilities which collect, store, convey or treat stormwater.

Storm Water Pollution Prevention Plan (SWPPP). A written plan required under state and federal stormwater discharge permits identifying measures that will be implemented to minimize the discharge of pollutants in stormwater. Requirements for SWPPPs are specified in state and federal discharge permits. Requirements vary depending on whether the discharge permit is associated with municipal, industrial, or construction activities.

Stormwater Retrofit. A stormwater management practice designed for an existing development site that previously had either no stormwater management practice in place or a practice inadequate to meet the stormwater management requirements of the site.

Stormwater Runoff. Also known as *Stormwater*, means flow on the surface of the ground, resulting from precipitation. Interchangeable terms include drainage and runoff.

Street. Any public way for the movement of vehicular and pedestrian traffic which is an existing federal, state, county or municipal roadway; or a right-of-way shown upon a plat, and approved pursuant to law, whether improved or unimproved, and may comprise pavement, shoulders, curbs, gutters, sidewalks, parking areas and other areas within the right-of-way.

Street, Arterial. Refers to the functional classification of a street in the entire transportation network, which has considerable continuity over long distances, and which is more specifically designed for speeds, volume and applicability according to the context, the standards in these regulations, and other specific transportation plans and policies.

Street, Collector. Refers to the functional classification of a street in the entire transportation network, which has moderate continuity over medium distances, and which is more specifically designed for speeds, volume and applicability according to the context, the standards in these regulations, and other specific transportation plans and policies.

Street, Local. Refers to the functional classification of a street in the entire transportation network, which has limited continuity except for short distances, and which is more specifically designed for speeds, volume and applicability according to the context, the standards in these regulations, and other specific transportation plans and policies.

Structure. That which is built or constructed, an edifice, or building of any kind, or any piece of work artificially built up or composed of parts joined together in some definite manner.

Tiedown. Any device designed to anchor a manufactured home or any other accessory building or structure to the ground.

Temporary Construction Use. A use, structure, or activity established to support construction, including but not limited to construction trailers, equipment and material storage yards, staging areas, temporary parking for construction personnel, and concrete or asphalt batch plants serving the project, which is authorized for a limited period tied to the duration of an active building or

site permit and is removed upon completion of construction or expiration of the permit, whichever occurs first.

Temporary Use. A use or activity that is intended to occupy the site on a non-continuous basis for more than 14 days.

Tower. Any structure that is designed and constructed primarily for the purpose of supporting one or more antennas for telephone, radio and similar communication purposes, including self-supporting lattice towers, guyed towers or monopole towers. The term includes, but is not limited to, radio and television transmission towers, microwave towers, common-carrier towers, cellular telephone towers, alternative tower structures and any tower support.

Tract. A unit of land established by a plat or otherwise as permitted by law, designated for limited or no development as part of an approved plan for a legitimate public or community purpose and designated for public or common ownership and maintenance.

Traffic-control Devices. Signs, signals, markings, or other approved geometric designs in the roadway approved by the public body or official having jurisdiction for the purpose of regulating, warning, guiding, or calming traffic.

Triple frontage lot. See "Lot, triple frontage."

Unit Space. A designated portion of a manufactured home park for the accommodation of one manufactured home.

Urban Drainage and Flood Control District (UDFCD). The metropolitan Denver drainage organization.

Utilities, Essential Services. Those utility facilities that provide end user services to customers. They include local distribution and collection lines for gas, electricity, water, sewer, telephone or cable TV services throughout neighborhoods and connect with each customer. They consist of cables, wires or pipes with limited capacities and the associated hardware, such as transformers, relays and shut-off valves. They also consist of traffic-control boxes and traffic signal installations.

Utility Facilities. Any utility facility, whether or not regulated by the Wyoming Public Service Commission, not described as an essential service utility.

Wall, Retaining. A physical barrier necessary to prevent erosion and/or retain earth.

Water Quality Capture Volume (WQCV). Represents runoff from frequent storm events such as the 80th percentile storm. The volume varies depending on local rainfall data. The WQCV is based on runoff from 0.6 inches of precipitation (approximately 0.5 inches of runoff).

Water System. A public or private system of providing potable water to a structure for domestic use.

Woonerf. A street designed for use by pedestrian and vehicular traffic, where the pedestrian has the right-of-way.

Workforce Accommodation Quarters. Temporary, residential and supporting facilities permitted strictly in conjunction with an active development project to accommodate construction personnel. These quarters provide modular housing, RV sites with utility hookups, and resident-only amenities, including, but not limited to, centralized dining, laundry, wellness, recreation, administrative offices, security, shuttle services, and necessary utility infrastructure. Workforce

Accommodation Quarters are authorized only for the duration of an active building or site permit for the associated development project and shall be removed upon completion of construction or expiration of the permit, whichever occurs first. The accommodations shall be at least 1,000 feet from any school, church, or residential area.

WyDEQ. The Wyoming Department of Environmental Quality.

EPA Identifies Noise Levels Affecting Health and Welfare

[EPA press release - April 2, 1974]

Noise levels requisite to protect public health and welfare against hearing loss, annoyance and activity interference were identified today by the Environmental Protection Agency. These noise levels are contained in a new EPA document, "Information on Levels of Environmental Noise Requisite to Protect Public Health and Welfare with an Adequate Margin of Safety (PDF)."

One of the purposes of this document is to provide a basis for state and local governments' judgments in setting standards. In doing so the information contained in this document must be utilized along with other relevant factors. These factors include the balance between costs and benefits associated with setting standards at particular noise levels, the nature of the existing or projected noise problems in any particular area, the local aspirations and the means available to control environmental noise.

The document identifies a 24-hour exposure level of 70 decibels as the level of environmental noise which will prevent any measurable hearing loss over a lifetime. Likewise, levels of 55 decibels outdoors and 45 decibels indoors are identified as preventing activity interference and annoyance. These levels of noise are considered those which will permit spoken conversation and other activities such as sleeping, working and recreation, which are part of the daily human condition.

The levels are not single event, or "peak" levels. Instead, they represent averages of acoustic energy over periods of time such as 8 hours or 24 hours, and over long periods of time such as years. For example, occasional higher noise levels would be consistent with a 24-hour energy average of 70 decibels, so long as a sufficient amount of relative quiet is experienced for the remaining period of time.

Noise levels for various areas are identified according to the use of the area. Levels of 45 decibels are associated with indoor residential areas, hospitals and schools, whereas 55 decibels is identified for certain outdoor areas where human activity takes place. The level of 70 decibels is identified for all areas in order to prevent hearing loss.

Last updated on September 14, 2016

Compendium of WHO and other UN guidance on health and environment

2022 update

Chapter 11. Environmental noise



WHO/HEP/ECH/EHD/22.01

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11. Environmental noise

This section addresses exposure of the general population to environmental noise, such as noise from various forms of traffic or industry. It includes amplified music in the framework of leisure activities as well. It does not specifically include occupational noise exposure. Occupational risks, including noise exposure, are covered in section 11.3 on workplaces.

Overview

In 2011, an estimated one million healthy life years were lost from traffic-related noise in the western part of Europe only *(1)*. Important sources for environmental noise exposure are road, railway and air traffic, or building sites. Noise exposure can also occur through other sources such as wind turbines, and leisure activities such as listening to loud music or other audio content including participation in e-sports (video and computer game competitions). Excessive noise can cause annoyance; in addition research shows it increases the risk for IHD and hypertension, sleep disturbance, hearing impairment, tinnitus and cognitive impairment, with increasing evidence for other health impacts such as adverse birth outcomes and mental health problems *(2)*.

What is the proportion of people impacted by environmental noise in my country?

The noise indicators below are taken from guidelines that were developed for the WHO European Region. In terms of their health implications, the recommended exposure levels can be considered applicable in other regions and suitable for a global audience *(2)*.

Noise indicators are based on the European Union Directive 2002/49/EC *(3)* in the European Region.

- L_{den} is an average sound pressure level over all days, evenings and nights in a year.
- L_{night} is the equivalent continuous sound pressure level when the reference time interval is the night.
- $L_{Aeq,T}$ is the A-weighted (a frequency weighting to better reflect the human ear), equivalent continuous sound pressure level during a stated time interval starting at t_1 and ending at t_2, expressed in decibels (dB), at a given point in space.

The first two indicators are used particularly for noise monitoring and exposure assessment. The third is used for measuring leisure noise exposure. For more information on these and other noise indicators consult the *Environmental noise guidelines for the European Region (2)*. These noise indicators can be converted to other indicators used in other settings *(4)*.

What is the proportion of people impacted by environmental noise in my country?

Several countries use surveys to assess the perception of noise in the general population. The last European Quality of Life survey, carried out 2016–2017, found that 32% of more than 30 000 participants across Europe reported problems with noise in the immediate neighbourhood of their home *(5)*.

What are the levels of noise exposure we want to achieve?

Based on the systematic review of evidence available at the time of the development of the environmental noise guidelines *(2)*, the following recommended levels for specific noise sources can be defined.

For average noise exposure, the following sound pressure levels are recommended *(2, 6)*:

- < 53 dB L_{den} for road traffic noise
- < 54 dB L_{den} for railway noise
- < 45 dB L_{den} for aircraft noise
- < 45 dB L_{den} for wind turbine noise
- yearly average from all leisure source noises combined to ≤ 70 dB $L_{Aeq, 24h}$
- weekly average from leisure sources (such as personal listening devices [1]) ≤ 80 dB(A) or 1.6 Pa^2h
- short-term average from occasional exposure to leisure source noise ≤ 100 dB $L_{Aeq, 15min}$.

For **night noise exposure**, the following sound pressure levels are recommended *(2)*:

- < 45 dB L_{night} for road traffic noise
- < 44 dB L_{night} for railway noise
- < 40 dB L_{night} for aircraft noise.

Different categories of noise mitigation interventions along a continuum from source reduction to behaviour change can be defined. Interventions in the guidance section below are marked with A–E as defined hereafter *(2)*.

A. Source intervention:
   - change in emission levels of sources
   - time restrictions on source operators.
B. Path intervention:
   - change in the path between source and receiver
   - path control through insulation of receiver/receiver's dwelling
C. New/closed infrastructure:
   - opening of a new infrastructure noise source
   - closure of an existing one
   - planning controls between (new) receivers and sources.
D. Other physical intervention:
   - change in other physical dimensions of dwelling/neighbourhood.
E. Behaviour change intervention:
   - change in individual behaviour to reduce exposure
   - avoidance of exposure or reduced duration of exposure
   - community education and communication.

[1] A personal listening or audio device is a portable device designed to be worn on the body or in a pocket. It is designed to allow the user to listen to various forms of media.

Guidance	Sector principally involved in planning/ implementation	Level of implementation	Instruments
Road traffic noise: policies and actions			
Recommended actions are available for specific noise sources and do not cover all potentially important noise exposures.			
1. Improve the choice of appropriate tyres and road surface (A) *(2)*.	Transport Land use planning	National; community	Regulation; infrastructure, technology and built environment
2. Reduce traffic flow and restrict truck traffic (A) *(2)*.	Transport Land use planning	National; community	Regulation; taxes and subsidies; infrastructure, technology and built environment
3. Insulate dwellings, construct barriers (B) *(2)*.	Housing Land use planning	National; community	Regulation; taxes and subsidies; infrastructure, technology and built environment
4. Construct road tunnels (C) *(2)*.	Transport Land use planning	National; community	Infrastructure, technology and built environment
5. Design/make available a “quiet side” in the dwelling; create nearby green space (D) *(2)*.	Housing Land use planning	National; community	Infrastructure, technology and built environment
Railway noise: policies and actions			
6. Apply rail grinding procedures to remove deformations and corrosions on railway tracks (A) *(2)*.	Transport	National; community	Infrastructure, technology and built environment
Railway noise: awareness raising and capacity building			
7. Inform the community about interventions being implemented to potentially reduce noise annoyance (E) *(2)*.	Health Environment Transport	Community Universal health coverage	Information, education and communication
Aircraft noise: policies and action			
8. Adapt opening and closing of runways (C) *(2)*.	Transport	National; community	Regulation; other management and control

Guidance	Sector principally involved in planning/ implementation	Level of implementation	Instruments
9. Rearrange flight paths (C) *(2)*.	Transport	National; community	Regulation; other management and control
Leisure noise: policies and actions			
10. Implement sound exposure monitoring (volume level and time spent listening) in all personal listening devices to allow for self-control with reference to a standard. In every listening device, the user should be allowed to select two different operational modes of reference exposure *(6)*, and track the percentage of exposure used vs the reference exposure for every seven days. The two operational modes include the following. • Mode 1: WHO standard level for adults • Mode 2: WHO standard level for sensitive users (e.g. children).	Health Sports and leisure	National	Regulation; infrastructure, technology and built environment
11. Implement options for volume limitation and parental volume control in every device *(6)*.	Sports and leisure	National	Regulation; infrastructure, technology and built environment
12. Enact and enforce legislation/regulations/policies for limiting sound levels and exposure in entertainment venues and events such as clubs, bars, fitness centres, concerts, etc.*(3, 7)*. Legislation should focus on: • limiting sounds to 100 dB(A) averaged over 15 minutes; • conducting regular sound monitoring to ensure and document compliance; • optimizing venue acoustics and sound system design to ascertain optimal listening conditions for all audience members in the venue/event; • create quiet zones allowing audience members to rest; • ensuring provision of hearing protection (earplugs); • ensuring provision of training on noise reduction strategies and information about noise.	Sports and leisure	National	Regulation
Leisure noise: awareness raising and capacity building			
13. Provide information on personal sound exposure to the user of personal listening devices through the device interface or other means *(6)*.	Health Sports and leisure	National	Information, education and communication
14. Provide personalized recommendations and cues for action for safe listening through personal listening devices, customized to a user's listening profile through the device interface or other means *(6)*.	Health Sports and leisure	National	Information, education and communication
15. Provide instructions on how to use safe listening features on the specific device through the device interface or other means *(6)*.	Health Sports and leisure	National	Information, education and communication

Guidance	Sector principally involved in planning/ implementation	Level of implementation	Instruments
16. Provide general information on safe listening and ways to practise it through the device interface or other means *(6)*.	Health Sports and leisure	National	Information, education and communication

Selected tools
WHO 2021: WHO is developing a global standard for safe listening entertainment venues *(7)* This guidance will promote safe listening among attendees of entertainment venues to mitigate their risk of hearing loss.
WHO Regional Office for Europe 2018: *Environmental noise guidelines for the European Region (2)* Results of the noise guidelines are also available as an executive summary in different languages.
WHO/ITU 2019: *Safe listening devices and systems – a WHO-ITU standard (6)* This document outlines the key features and requirements that personal audio systems must have in order to facilitate safe listening practices among users.
WHO 2015: *Make listening safe (8)* This webpage provides access to advocacy material around safe listening such as infographic, poster, banner and brochure.
WHO/ITU 2019: *Toolkit for safe listening devices and systems (9)* This toolkit provides practical guidance to support countries, industry partners and civil society groups in the use and implementation of the global standard on safe listening devices and systems (ITU-T H.870) *(10)*.
WHO Regional Office for Europe 2012: *Methodological guidance for estimating the burden of disease from environmental noise (11)*
WHO Regional Office for Europe 2011: *Burden of disease from environmental noise. Quantification of healthy life years lost in Europe (1)*
WHO Regional Office for Europe 2009: *Night noise guidelines for Europe (12)*

References

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2. Environmental noise guidelines for the European Region. Copenhagen: WHO Regional Office for Europe; 2018 (https://apps.who.int/iris/handle/10665/279952).
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11. Hellmuth T, Classen T, Kim R, Kephalopoulos S, editors. Methodological guidance for estimating the burden of disease from environmental noise. Copenhagen: WHO Regional Office for Europe; 2012 (https://www.euro.who.int/__data/assets/pdf_file/0008/179117/Methodological-guidance-for-estimating-the-burden-of-disease-from-environmental-noise-ver-2.pdf, accessed 2 December 2021).
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World Health Organization
Department of Environment, Climate Change and Health
Division of Universal Health Coverage / Healthier Populations
20, Avenue Appia
CH-1211 Geneva 27
Switzerland

www.who.int/teams/environment-climate-change-and-health

Seth Lloyd

From: kevin kilty <ktf.kilty@gmail.com>
Sent: Friday, October 16, 2026 9:33 AM
To: Charles Bloom; Seth Lloyd; Connor White
Subject: [EXTERNAL] From the website directory

Follow Up Flag: Follow up
Flag Status: Completed

October 14, 2026
October 14, 2026
October 14, 2026

October 16, 2026

Cheyenne City Planning Commission
Mr. Charles Bloom, City Planning Department Head
Mr. Seth Lloyd, Senior Planner
City of Cheyenne Planning Department

Gentlemen:

I read recently that the City of Cheyenne is considering modifications to its development code regarding noise nuisances and noise limits. The article I read generally spoke to either reducing permitted sound levels, or splitting into two permitted sound levels depending on time of day. There are good efforts which will help produce protection against sound nuisance. The UDC as it currently stands (udc-2026-07-09.pdf) makes general reference to all sources of noise in presumably all environments, but Article 5 appears to focus on wireless communication facilities. Hopefully concerns about noise nuisance encompass all sorts of facilities, including power-producing facilities which are invading residential neighborhoods, rural neighborhoods especially.

I am taking the liberty of offering some advice in regards to noise ordinances. I possess a Ph.D. in Geophysics, a P.E. in Mechanical Engineering (Washington State), and have taught engineering at both Washington State University and University of Wyoming. Nothing I have to say here represents policy positions or opinions of these employers or certificate granting agencies, but rather, represents personal views of and advice regarding these complex topics. I have been involved in acoustics from the standpoint of geophysical exploration, earthquake engineering, and I have even conducted sound surveys of industrial sources, particularly wind turbines and railroad vibrations.

If I may, I would like to address two separate topics. The first is the method by which some developers use to estimate what noise impacts are expected at adjacent property lines. The second is the specification of noise levels and metrics to apply to permitting industrial facilities.

First, my experience with wind energy plant permitting suggests that developers commonly use an international standard (ISO 9613-2) as a guide to estimating noise impact. This standard is most suited to estimation of noise from industrial facilities near the ground surface – solar facilities, substations, data centers and the like. It possesses some deficiencies however, when applied to facilities that are placed on or near rugged terrain like that often found in Wyoming, noise sources that are widely distributed in space, and becomes even more deficient when applied to tall noise sources such as wind turbines. These deficiencies bear directly on impact studies, for which your development code, appears to address only impacts to transportation and drainage.

In situations where the assumed conditions for applying ISO 9613-2 deviate from the actual situation, developers should calculate an engineering margin to inform permitting authorities about possible deviations from these estimates. I have yet in my experience to read a noise study where this is done, however.

Second, with regard to ordinances, the few that exist in Wyoming often state only a single noise limit or possibly two limits with one applying to daytime and the other to night time hours. While this is a positive trend, what such ordinances still fail to do routinely is to specify fully how to measure noise. For example, in Albany County we have an ordinance pertaining to wind turbines that they will not produce noise above 55dBA at any non-participating adjacent property line. This specifies a limit, 55dB, and a weighting standard, the 'A' weighting scale per noise frequency. It leaves out measurement specifications. In particular, specification about the time period over which noise measurements are to be averaged. It therefore encourages developers to decide a time period most advantageous to their interests which possibly defeats the purpose of a noise ordinance in the first place.

Examples of a more complete metric include the following two. The L_{DN} metric is used by the FAA to limit airport noise. It stipulates a day time noise limit and weighting factor, but also provides a 10dB penalty for noises during the nighttime hours from 2300 hours to 0700 hours the following morning. The period of averaging is yearly.

The L_{DEN} metric is used in Europe most often and breaks the day into three intervals with a stipulated level and weighting scale pertaining to the daytime hours, a 5dB penalty for noises made in the evening, and a 10dB penalty for nighttime noise. It also employs annual averaging. Futhermore, these metrics also specify how the measurements are to be processed into a value to compare to the noise ordinance.

Possibly a yearly average will seem excessive, and shorter averaging periods would likely be appropriate for facilities that produce consistent sound. Use of a yearly averaging period, though, prevents any "gaming" of an ordinance by using averages over short periods of time, or taking advantage of meteorological conditions at particular times of the year that are not characteristic of noise as it is experienced over continuous facility operations. It allows someone to measure noise and decide whether or not there is a violation of noise ordinance. Details about these metrics are available in handbooks of noise and vibration such as Malcomb Crocker's "Handbook of Noise and Vibration Control".

I should also mention that a noise standard specifying levels such as 55dB might miss aspects of noise that become important in certain circumstances. For example, noises can present nuisances at sound levels below background because of tonal qualities or frequency structure or periodic repetition. Noise can interact with the structure of a building, building resonances for instance, to become a nuisance; and, vibration can propagate through the Earth to enter a building through its foundation and present a nuisance unrecognized at outdoor locations. Noise is complex. Dealing with it as a nuisance requires more that just specifying weighted noise levels.

Thank you for your time and consideration.

Kevin Kilty
Laramie, Wyoming

EXTERNAL

The above message was received from someone outside the city. Please do not open any attachments or click on any links unless you can 100% verify the sender is authentic.

RAND ACOUSTICS, LLC

Robert W. Rand, ASA, INCE (Member Emeritus)
RAND ACOUSTICS, LLC
65 Mere Point Road
Brunswick, ME 04011

E-mail: rrand@randacoustics.com
Telephone: 207-632-1215

October 16, 2026 ***Via Electronic Mail***

To: City of Cheyenne Planning Commission
2101 O'Neil Avenue, Suite 202
Cheyenne, WY 82001

Re: Staff Report: A Text Amendment amending the Unified Development Code (UDC)
dated October 5, 2026 (edit date Sep 30, 2026 at 3:40 PM)
Case Number: PLTA-26-5

This letter is respectfully submitted on behalf of Albany County Conservancy members in the Cheyenne area, generational ranch owners in the Horse Creek area, and Platte County residents. This letter provides a brief independent review of the subject Staff Report with respect to the proposed amendments to clarify current regulations and codify current policies around data center and construction requirements for noise regulation. Noise metrics and data collection are discussed. Recommendations are provided for suitable noise measurement methods to quantify sound levels and protect sleep and amenity. Minor rewording suggestions are also provided. Qualifications are attached.

Noise Limits and Metric

Noise Limits: The inclusion of night time noise limits at residential property lines in Table 1-2 is a good step towards protecting public health and welfare, specifically sleep. The 55 day/ 45 night appears taken from the original EPA 1974 "Levels Document" 55 Ldn (day-night sound level) recommendations for sound limits in urban residential areas. The EPA's selected the 55 Ldn guideline to protect speech intelligibility in the urban residential land use. The 55 Ldn was not designed to protect against sleep disturbance. Whereas the World Health Organization (WHO) 2018 Environmental Noise Guidelines Section 2.4.3.2 affirmed from the WHO Night Noise Guidelines (WHO, 2009) that, with respect to sleep disturbance, there are observed adverse health effects at average levels starting from 40 dB(A) Lnight; for a steady intrusive noise source, an average level of 40 dBA. The Staff Report cites 40 dBA limits from other regulations. Accordingly, I recommend the 40 dBA night noise limit be adopted for protection of sleep in residential areas. I also agree with the use of dBC to account for low frequency noise. To avoid rattle and high annoyance, C-weighted sound levels should be limited to 65 dBC daytime and 60 dBC during night hours. See rewording discussion below.

Noise "Metric": A noise measurement method should be defined in the regulations. To account for the full range of noise levels, measurements of dBA and dBC sound levels should be acquired with the sound under investigation dominating the acoustic environment, using a 0.1-second Leq time averaging as "noise metric" in representative time periods with the Leq-0.1s samples stored for analysis. The time period should be sufficient to characterize the variations if any of the sound being evaluated. A minimum of 1 minute and a maximum of 1 hour should be defined. If the sound is steady, a 1- to 5-minute average is usually adequate to characterize the sound levels. If sound is fluctuating, the regulatory sound limit should be applied to all individual Leq samples acquired when the sound is dominant. Sound data collection practices should conform to ANSI S12.9 Part 3. Descriptors and methods for sound level measurements should be detailed in the zoning documents Definitions section to ensure clarity and consistency.

Suggested wording for Table 1-2 is shown below, incorporating dBC and protective limits for sleep.

Adjacent Zone (and Qualifying Conditions)	**Daytime Limits (7:00 a.m. to 10:00 p.m.)**	**Nighttime Limits (10:00 p.m. to 7:00 a.m.)**
City Zone Districts excepting Residential Use: AG, CB, BP, P, LI, HI, non-residential PUDs	65 dBA	60 dBA
Unincorporated County Zone Districts excepting Residential Use:: CB, LI, HI, P, MU, non-residential PUDs, LU tracts over 10 acres (undeveloped/agricultural), LU tracts developed with utility or non-residential uses	65 dBA	60 dBA
All Other Zoning Districts including Residential Use	45 dBA	40 dBA
All Zoning Districts	65 dBC	60 dBC

Rewording Suggestions

The following rewording suggestions are respectfully provided to strengthen the noise regulations.

1. "Discernable"

The word discernable is a variant of the more common discernible, "able to be discerned" (collinsdictionary.com). A sound's potential to be discerned is not fixed by a decibel value. For example, generally speaking, a sound that is "discernable" (detectable) at a decibel level of 45 dBA is not suddenly inaudible if it drops to 44 dBA.

Recommendation: In section 1.4.3 shown on Staff Report page 5, an appropriate wording change would be to replace all instances of "discernable" with "regulated".

2. "Consistent"

The sounds intended to be regulated are defined in section 1.4.3 as "For the purposes of uses classified as industrial, or for non-industrial uses which consistently run on-site machinery". The word "consistent" is undefined, and for a variety of sounds, could be interpreted in a way to exclude those sounds from regulation. One example is periodic air compressor pressure recharge, which is occasional and occurs on pressure demand.

Recommendation: In section 1.4.3 shown on Staff Report page 5, remove the word "consistent".

3. Section 5.7.1.a.3 *Exempt Activities*

The phrase "The following shall not be considered activities which produce noise discernable at the property line:" departs slightly from typical zoning wording encountered during consulting with regulatory agencies.

Recommendation: The phrase should be reworded as "The following activities shall be exempt from noise regulation at the property line:"

4. Section 5.7.1.a.3(a)

The section states, "Sound, including data center operation, that is discernable at interior property lines between developments under common ownership or located within a common site plan." The word "discernable" is not needed.

Recommendation: This item should be reworded as "Sound, including data center operation, at interior property lines between developments under common ownership or located within a common site plan." A caveat: If facilities are required to build residences on site, provision should be made in the permitting to require noise limits protective of sleep in residential use such as listed in Table 1-2.

5. Table 1-2 and noise impacts.

The Cheyenne zones AG and CB contain residential or sleep uses. To protect sleep, the Table 1-2 "City Zone Districts" should be qualified as "City Zone Districts excepting Residential Use".

Recommendation: The day/night noise limits at residential lot lines should be adjusted to 45 daytime and 40 nighttime, dBA. The intent of the Table should be stated to provide sound limits to protect sleep in residential use in all zones where residential use is permitted.

6. Low frequency noise limits.

The Staff Report advises to limit the C-weighted sound level to a maximum of 20 dB above the A-weighted sound level. ANSI S12.9 Part 3 Table C.3 confirms typical average C-weighted ambient sound levels are approximately 12 dB above average A-weighted sound levels. Broner[1] advised a dBC limit goal of 65 dBC day, 60 dBC night. The 60 dBC limit is consistent with the recommended residential night noise limit of 40 dBA + 20.

Recommendation: To avoid rattle and high annoyance, C-weighted sound levels should be limited to 65 dBC daytime and 60 dBC during night hours.

I appreciate your consideration of this letter review. If you have any questions, please contact me.

Respectfully Submitted,



Robert W. Rand, ASA, INCE (Member Emeritus)

Attachment: Qualifications

1 N. Broner, "A Simple Criterion for Low Frequency Noise Emission Assessment", Journal Of Low Frequency Noise, Vibration And Active Control, Vol. 29 No. 1 2010.

Reviewer Qualifications

Mr. Rand is owner of Rand Acoustics, LLC, a Member Emeritus of the Institute of Noise Control Engineers (INCE), and a Member of the Acoustical Society of America (ASA), with over four decades of experience providing environmental and technical consulting services to power generation, military, medical, commercial, industrial, and community projects.

Mr. Rand's experience in general acoustics includes industrial noise control, environmental impact assessment, interior acoustics, and electroacoustics, with ten years in the Noise Control Group at Stone & Webster Engineering Corporation, and five years of consulting projects for DARPA and the U.S. Army. He has conducted environmental acoustic analyses, project engineering and budget management, permitting reviews, acoustic testing, noise control design and cost estimating, noise control planning and operations monitoring activities for power generation and commercial projects. Mr. Rand has consulted on regulations and planning document reviews at local and township levels. Over the last sixteen years Mr. Rand has conducted numerous investigations of wind turbine and solar facilities including application and noise report peer reviews, attended noise measurements, and expert testimony. A copy of his biography, work history, cases where he has been accepted as an expert witness in the field of acoustics, and a list of papers published is available on request.

Seth Lloyd

From: Wendy Volk <wendyvolk@cheyennehomes.com>
Sent: Friday, October 16, 2026 1:06 PM
To: Seth Lloyd
Cc: Kevin Kilty; Kathryn Stevens; KENNETH LAY; Anne Brande; rrand randacoustics.com; John F. Volk; J. Fred Volk
Subject: [EXTERNAL] Public Comments – PLTA-26-5 | Industrial Noise Standards, Property Rights and Land-Use Compatibility

Follow Up Flag: Follow up
Flag Status: Completed

Dear Seth,

Thank you for the City of Cheyenne Planning Department's efforts to update the Unified Development Code (UDC) to address industrial noise, data centers, and large-scale construction activities. I appreciate the opportunity to provide public comments regarding **PLTA-26-5** and request that these comments be included in the public record and shared with the Planning Commission and City Council.

As a fourth-generation Wyoming real estate professional with more than 30 years of experience in residential, commercial, new construction, and land development, I believe these proposed regulations have significant implications for private property rights, property values, marketability, and the long-term character of Cheyenne and its surrounding communities.

I am particularly interested in ensuring that the City's noise regulations address not only the technical measurement of sound but also the real-world consequences of industrial development for neighboring property owners.

A Current Commercial Real Estate Example: Campstool Addition

I am currently involved in a commercial real estate matter within Cheyenne city limits that demonstrates why comprehensive industrial noise regulations are so important.

At Campstool Addition, Fourth Filing, industrial noise associated with the CleanSpark facility has generated concerns among neighboring commercial property owners and nearby residential property owners. Earlier correspondence documented a reported noise measurement of approximately 80 decibels on the east side of the facility. Subsequent efforts to address noise included the installation of substantial sound-mitigation walls.

While reducing industrial noise is an appropriate objective, these walls have created additional concerns regarding architectural compatibility, visual impacts, protective covenants, and the interests of adjacent commercial property owners.

This situation highlights an important issue: **A noise mitigation solution should not create a new land-use problem for neighboring properties.**

In this instance, the Architectural Control Committee has raised concerns about whether the walls received the required approvals under the subdivision's protective covenants. Although the enforcement of private covenants is separate from the City's regulatory responsibilities, this experience underscores the importance of coordinating acoustical requirements with site-plan approval, architectural standards, landscaping, screening, and neighboring property considerations.

It also demonstrates why industrial noise should be addressed during the initial design and permitting process rather than relying on potentially costly or visually intrusive modifications after construction.

Recommendations Regarding PLTA-26-5

I respectfully encourage the Planning Commission to consider the following recommendations before adopting the proposed amendments.

1. Protect existing residential uses regardless of zoning classification.

The City's proposed standards distinguish between residential and various agricultural, commercial, and industrial zoning districts. However, agricultural and mixed-use properties frequently contain established homes, including ranch residences and other lawful residential uses.

I encourage the City to ensure that residential noise protections apply wherever people lawfully reside, rather than relying exclusively on zoning classifications.

In this regard, I support serious consideration of acoustical consultant Robert Rand's recommendation for residential limits of 45 dBA during daytime hours and 40 dBA during nighttime hours, along with specific limits addressing low-frequency noise.

2. Recognize potential impacts on commercial property values and marketability.

Noise regulations should not focus exclusively on residential properties.

From a commercial real estate perspective, persistent industrial noise, large mitigation walls, and incompatible exterior improvements can influence a property's development potential, tenant appeal, marketability, and highest and best use.

Industrial and commercially zoned properties often represent substantial investments. The owners of those properties have legitimate interests in maintaining reasonable compatibility with neighboring development.

The City should consider how proposed industrial operations and their associated mitigation structures may affect adjoining properties, even when those properties are not residentially zoned.

3. Require comprehensive acoustical analysis before development approval.

I encourage the City to require independent review of acoustical studies for major industrial projects, including data centers and associated power-generation facilities.

Studies should address:

- Existing baseline noise conditions and cumulative sound from nearby industrial operations.
- Daytime and nighttime noise, including low-frequency and intermittent sound.
- Anticipated noise under normal, peak, and emergency operating conditions.
- Impacts on all potentially affected neighboring properties, not simply immediately adjoining parcels.
- Proposed mitigation measures and their visual and land-use impacts.

These studies should be completed early enough in the approval process to allow meaningful changes to equipment selection, site layout, setbacks, and other design considerations.

4. Coordinate approval of noise mitigation measures with other development requirements.

Our experience at Campstool Addition demonstrates the importance of this issue.

Sound walls, mechanical enclosures, berms, equipment modifications, and similar mitigation improvements should be reviewed for compliance with applicable zoning, site-plan, building, landscaping, and architectural requirements before construction.

Substantial modifications to previously approved industrial facilities should also be subject to appropriate review.

I encourage the City to establish a coordinated process so that addressing acoustical concerns does not unintentionally create new conflicts involving adjacent landowners.

5. Address cumulative impacts and long-term land-use compatibility.

Southeastern Wyoming is experiencing considerable interest in industrial development, including data centers, wind energy facilities, transmission infrastructure, and associated power-generation projects.

Although the City does not regulate every project in the surrounding counties, these developments illustrate why cumulative impacts should be considered when evaluating projects within municipal jurisdiction.

Individual developments should not be evaluated without regard to existing and reasonably foreseeable industrial activities that may affect the same properties.

This is especially important for existing residential neighborhoods, agricultural properties, and commercial developments located near expanding industrial areas.

6. Establish clear monitoring, enforcement, and corrective-action requirements.

Approval of an acoustical study should not be the final step in determining compliance.

I encourage the City to require post-construction sound testing under representative operating conditions, clearly defined noise measurement protocols, and procedures for responding to complaints and correcting violations.

Monitoring results and compliance documentation should be publicly accessible, subject to applicable legal protections.

Neighboring property owners should not be placed in the position of having to commission their own costly technical studies or pursue lengthy disputes to address impacts that could have been anticipated and mitigated during project review.

7. Consider the effects of multiyear construction and temporary workforce accommodations.

Large-scale industrial projects may involve years of construction, significant equipment activity, and temporary housing or support facilities.

The City should ensure that its construction standards address the potential noise impacts of these activities on neighboring properties, including construction occurring during evening and nighttime hours.

Temporary workforce accommodations should also receive appropriate protections where people are sleeping, regardless of whether the underlying property is zoned for residential or industrial use.

Closing Comments

I recognize that major industrial investments can contribute to Cheyenne's economic development. At the same time, these projects must be thoughtfully integrated into the surrounding community.

Our experience with the CleanSpark facility at Campstool Addition provides a practical example of how industrial noise can lead to complicated and potentially expensive conflicts involving neighboring commercial property owners, development standards, and mitigation improvements.

As a real estate professional, I believe that property rights must be considered on both sides of the property line.

The goal should be to prevent avoidable conflicts before construction, rather than leaving property owners, developers, and the City to resolve them afterward.

I respectfully encourage the Planning Commission to strengthen PLTA-26-5 by incorporating the independent acoustical recommendations, considering the impacts on both residential and commercial properties, and establishing enforceable standards that protect long-term land-use compatibility.

Thank you, Seth, for your consideration and for your work on these proposed amendments. I would welcome the opportunity to discuss the Campstool Addition experience or provide additional documentation that may assist the Planning Commission in its review.

Sincerely,

Wendy Volk

Broker Associate/Real Estate Professional

#1 Properties

6106 Yellowstone Rd, Cheyenne, WY 82009

307-630-5263



From: rrand randacoustics.com <rrand@randacoustics.com>
Sent: Friday, October 16, 2026 11:44 AM
To: slloyd@cheyennecity.org <slloyd@cheyennecity.org>
Cc: Kevin Kilty <kkilty@ix.netcom.com>; Kathryn Stevens <kat.c.stevens@gmail.com>; Wendy Volk <wendyvolk@cheyennehomes.com>; KENNETH LAY <boxelderpark@mac.com>; Anne Brande <albanycountyconservancy@gmail.com>
Subject: REVIEW: Staff Report: A Text Amendment amending the Unified Development Code (UDC) dated October 5, 2026

Re: Staff Report: A Text Amendment amending the Unified Development Code (UDC)

dated October 5, 2026 (edit date Sep 30, 2026 at 3:40 PM)

Case Number: PLTA-26-5

Hello Mr. Lloyd,

The letter attached is respectfully submitted on behalf of Albany County Conservancy members in the Cheyenne area, generational ranch owners in the Horse Creek area, and Platte County residents. This letter provides a brief independent review of the subject Staff Report with respect to the proposed amendments to clarify current regulations and codify current policies around data center and construction requirements for noise regulation. Noise metrics and data collection are discussed. Recommendations are provided for suitable noise measurement methods to quantify sound levels and protect sleep and amenity. Minor rewording suggestions are also provided. Qualifications are attached.

I appreciate your consideration of this letter review. If you have any questions, please contact me.

Respectfully Submitted,

Robert W. Rand, ASA, INCE (Member Emeritus)
Rand Acoustics, LLC
Tel: 207-632-1215
E-mail: rrand@randacoustics.com

EXTERNAL

The above message was received from someone outside the city. Please do not open any attachments or click on any links unless you can 100% verify the sender is authentic.

THE ALBANY COUNTY CONSERVANCY
224 E. Ivinson Ave.
Laramie, WY 82070
United States
EMAIL: albanycountyconservancy@gmail.com
WEB: albanycountyconservancy.com

October 16,2026
To: City of Cheyenne Planning Commission and supporting staff,
2101 O'Neil Avenue, Suite 202
Cheyenne, WY 82001

Re: Public Comment regarding Unified Development Code (UDC) proposed amendments

Dear Planning Commission and supporting staff,
My name is Anne Brande, and I am a fourth generation Wyoming business owner. I own and operate this State's oldest downtown business, Ludwig Photography, which was located at 1705 Logan Avenue here in Cheyenne for over five decades. Ludwig's has been in my family for over 121 yrs.

I am also the founder and executive director of the Albany County Conservancy, ACC for short. Our 501C3 Wyoming Nonprofit organization has members throughout Southeastern Wyoming with the heaviest concentration residing in Albany, Laramie, and Platte counties.

As director I have done a deep dive into the cumulative, contiguous impacts of industrial noise. Industrial development once approved attracts more industrial development or backfill. You, our City of Cheyenne Planning Commission and staff, are on the right track amending the Unified Development Code, lowering daytime and nighttime noise levels, however the city must define measurable metrics. And you must look at the contiguous industrial buildout occurring in the Cheyenne area.

For over seven years ACC has been focused on World Health defined sound metrics. In 2021 upon multiple professional suggestions ACC hired the expertise of Rob Rand. ACC knew Rob Rand was a nationally and internationally sought after acoustician employed typically by industry and government at all levels as well as nonprofits, but we were unaware of his familiarity also with southeast Wyoming. A year or two after we received and utilized our Rand Acoustics sound analysis, we learned that Rob Rand recorded Wyoming sounds back in 2022 and years prior to that not far from an area along the I-80 City of Cheyenne corridor which currently is experiencing massive development. Cheyenne residents have homes in close proximity to development. Rand's recordings are enjoyed by people all over the world and focus on migratory birds. Wyoming ecosystems are utilized by human and wildlife populations. Best health practices support Wyoming communities.

ACC members realize the importance of quality City of Cheyenne sound metrics. Many of us after reading the recent article titled "Power generating facility, data center UDC amendments postponed …" then opened the link which provided staff reporting and reviewed the materials. Subsequently we then raised funds and immediately hired Rob Rand to review these materials. If there are any questions regarding Rob Rand's succinct recommendations, please do not hesitate to reach out to him directly. We ask City of Cheyenne Staff and this Commission to adopt Rand's analysis suggestions. Quality night sound levels are an amenity worth guarding. Focusing on safe levels proved by measurable scientific metrics will prevent the possibility of any future lawsuits.

All of Wyoming is watching as you navigate through exploding industrial growth. Electricity, good pay local jobs, reliable and safe data storage are benefits to the people of Cheyenne. Best parameters regarding human health are essential to a thriving community.

With Highest Regards,

Thank you for your time.

Anne Brande, Executive Director

www.albanycountyconservancy.org

Seth Lloyd

From: Kathryn Stevens <kat.c.stevens@gmail.com>
Sent: Friday, October 16, 2026 3:01 PM
To: cwhite@cityofcheyenne.org; Seth Lloyd
Subject: [EXTERNAL] Public Comment Re: PLTA-26-5, Proposed Amendments for Mtng on 10/19/26

Follow Up Flag: Follow up
Flag Status: Completed

Hello City of Cheyenne Planning Commission,

My name is Kathryn Stevens, and I live in Southeast Platte County, in an area affected by some of the industrial projects undertaken and permitted by both Cheyenne and Laramie County. I've spent the last year and a half researching sound- specifically the physiological ramifications of industrial noise on human health. I have presented my research as a citizen party to the Industrial Siting Division and spoken on this topic at events in Colorado and Cheyenne to help regular people understand how low-frequency noise from industry interacts with the landscape and the human body. I've also brought this information to my local county commission board. The only reason I say all of that is to tell you that I'm very personally invested in the intersection of science and human health in the arena of sound. I started this research because of my children and I'm writing to you today for the same reason.

I've read acoustical engineer Robert Rand's letter to you all and I wholeheartedly agree with his points and recommendations. I've spoken with Mr. Rand at length about industrial noise and I appreciate his expertise in the field. His research and measurements have been used both nationally and internationally and he maintains independence in his employment for the express purpose of presenting his recommendations with impartiality and integrity.

Regarding the proposed amendments in your staff report, I want to commend you for strengthening your development code in the areas of decibel limits, especially at night. These protections will directly improve the quality of life in Cheyenne while still allowing for responsible industrial development. Low Frequency noise travels for dozens of miles at night when there are fewer competing vibrations to interfere with it, so limiting nighttime noise in Cheyenne directly affects my family (along with many others). Sleep is integral to human health and the mitigation of disease and chronic illness. Protecting the nighttime quiet of your city obviously protects the well-being of your citizens, but it also decreases the likelihood of workplace accidents and traffic accidents, which is a win-win for the city. I could go on about the benefits of nighttime sleep, but I think that you probably get it. ;)

Lastly, please incorporate the few simple wording changes that Mr. Rand recommended, as they do seem to make the regulations both clearer and stronger.

Thank you for taking the time to read my comments on this issue. I look forward to seeing the City of Cheyenne make these important changes to protect its citizens, and I want to encourage you toward that end.

Sincerely,

Kathryn Stevens

--

Kathryn Stevens

"Jesus answered, "I am the Way and the Truth and the Life. No one comes to the Father except through me." (John 14:6)

http://camelliaimages.blogspot.com/

EXTERNAL

The above message was received from someone outside the city. Please do not open any attachments or click on any links unless you can 100% verify the sender is authentic.

Seth Lloyd

From: Connor White
Sent: Monday, October 19, 2026 10:36 AM
Cc: Seth Lloyd; Charles Bloom
Subject: Fw: [EXTERNAL] for the planning commission
Attachments: PLTA-26-5 Comments - Defining Data Centers by Size.docx; Data Center Setbacks - Planning Commission Handout.docx

All,

Please see the attached public comments for tonight's meeting.

Regards,

Connor White
Planner II | Planning and Development
City of Cheyenne, Wyoming
2101 O'Neil Ave., room 202
Cheyenne, WY 82001

Main Line: (307)637-6282 / Direct: (307)638-4342
www.cheyennecity.org/PlanningandDevelopment

From: Heather Madrid <heather.madrid@gmail.com>
Sent: Monday, October 19, 2026 10:33 AM
To: Connor White <cwhite@cheyennecity.org>
Subject: [EXTERNAL] for the planning commission

Hi Connor,

Will you please forward these attachments along to the planning commission?

Thanks!

EXTERNAL

The above message was received from someone outside the city. Please do not open any attachments or click on any links unless you can 100% verify the sender is authentic.

Comments on PLTA-26-5: Defining Data Centers by Size

What we're asking for

Data centers bring real investment and tax revenue to Cheyenne, and PLTA-26-5 adds useful standards for noise, water, fire safety and construction. We support that work. Our concern is narrower: the amendment keeps a single definition for every data center, whatever its size, and does not change where data centers are allowed or how they are approved. We ask the Commission to add three things before recommending approval:

1. **A graduated definition based on megawatts (MW) of power demand.** A small server building and a campus of hundreds of megawatts with its own power plant have very different effects on their neighbors, and the code should recognize that.
2. **Review that scales with size.** Small data centers would stay by right. Larger ones would go through a conditional use with a public hearing, and the studies they must provide would grow with their size.
3. **A look at the combined impact of data centers, not just one project at a time.** Many mid-size projects built near each other can add up to more than any single large one.

Clear tiers help developers as well as neighbors. A company planning a project would know up front which zones it can use, what review it will go through, and what studies it needs, instead of facing uncertainty and controversy project by project.

Where the amendment could go further

- **The definition covers every size the same way.** The report says staff considered editing 1.4.4.f "Data Centers" but left it alone, because it already excludes small server rooms in office buildings (page 4). That handles the small end. But the definition has no upper category, so a single small server building and Meta's 960-acre campus, with its own fuel cell power plant planned, fall under the same use.
- **Where and how data centers are approved stays the same.** New section 5.7.1 begins "In districts where data centers are allowed" (page 7). The use table is not amended, so the same zones and the same approval process continue to apply.
- **The staff report recognizes this scale was not planned for.** The report says PlanCheyenne did not consider data center development, or industrial development at this size and scope (page 14). The UDC itself says uses not anticipated by the code may only be allowed through a text amendment (page 2). This amendment is a natural place to create the right categories.
- **The code already treats a campus as one site for noise.** Noise at interior lot lines between buildings under common ownership or one site plan is exempt (page 8). The same approach should apply when deciding how big a facility is.
- **On-site power needs clearer standards.** Section 5.7.1.e says on-site power "shall meet all requirements of the applicable power generation type" (page 8), but does not say what those are, where they are allowed, or how far they must be from homes.

- **Development agreements could be used to go around the rules.** New section 1.1.9 lets the City agree to "an alternative process, alternative timeframe, or other alternative or supplemental means" of meeting the code (page 5). That is useful flexibility, but it should not be a way to skip the size tiers, public hearings or studies proposed here.
- **The health and safety finding covers noise and construction, but not air quality.** The analysis of the health, safety and welfare criterion (page 15) does not address emissions from generators or on-site power plants.
- **The record should be updated.** The report is dated October 12, carries a staff update dated October 19, and refers to discussion at a November 5 meeting (page 1). It also says no public comment has been received (page 15). An updated record would help the Commission and the public follow the process.

Why the largest data centers differ from light industry

Light industrial zoning is generally meant for uses like warehouses, assembly and small manufacturing, with modest power needs and limited effects on neighbors. The largest data centers are different in four ways.

- **Power.** Independent satellite-based estimates put just the buildings visible so far on Meta's Cheyenne campus at about 150 megawatts today and about 200 megawatts by early 2027 (Epoch AI). Meta has not published its power use at full buildout, which is why the definition should ask applicants to disclose it. Meta's planned on-site fuel cell plant has also been discussed at public meetings and has prompted another update to the UDC. That is the load of a power plant, not a factory.
- **Hours.** Data centers run every hour of every day. Cooling equipment, transformers and any on-site power plant never shut off.
- **Equipment.** Large campuses carry banks of diesel backup generators and, increasingly, their own power plants. Those are power generation uses, with air permits, not light manufacturing equipment.
- **Scale of impact.** A single campus can cover hundreds of acres and take years to build, which is why this amendment needs a whole new section on construction impacts.

Under by-right approval, these projects do not get a public hearing. Decisions are made by technical staff and outside agencies (Wyoming Tribune Eagle). A public hearing gives neighbors a chance to be heard and gives the Commission a chance to add reasonable conditions.

A graduated definition based on megawatts

Every data center above the small tier gets the same public process: a conditional use with a public hearing. What changes with size is where it can go and what it has to study and commit to. The exact thresholds are a policy choice for the Commission; these are a reasonable starting point.

Tier	Size (total power demand)	Where allowed	Approval	What's required
Tier 1: Small	Up to 5 MW	Light Industrial, Heavy Industrial, Business Park	By right, unless near a cluster (see below)	Staff site plan review and sound study
Tier 2: Medium	Over 5 MW up to 50 MW	Light Industrial, Heavy Industrial	Conditional use with public hearing	Sound study, backup generator plan, cumulative impact review
Tier 3: Large	Over 50 MW up to 300 MW	Heavy Industrial only	Conditional use with public hearing	Everything in Tier 2, plus a health impact assessment, air modeling and power demand at full buildout
Tier 4: Hyperscale	Over 300 MW, or any size with on-site power generation	Heavy Industrial only	Conditional use with public hearing	Everything in Tier 3, plus emission testing after startup, a locked-in power technology and fuel, and a development agreement

Cumulative impact review

A project's effect depends on what is already around it, not only on its own size. So the combined review is triggered by location, not by tier:

- **Every conditional use includes it.** Each Tier 2, 3 or 4 application shows its noise and air impact combined with all existing, approved and pending data centers and power plants within 2 miles, whether they are in the city or the county. A project next to open land would have a short review. One next to an existing cluster would have a substantial one.
- **Small projects near a cluster need a hearing too.** A Tier 1 data center within 2 miles of existing or approved data centers totaling more than 50 MW becomes a conditional use, so many small projects cannot add up unreviewed.
- **An area-wide limit.** The City sets a combined limit for each area, as Washington State does for data centers in Quincy, where each project may add no more than 10 in a million to cancer risk and all data centers together no more than 100 in a million (Washington Department of Ecology). Once an area nears its limit, new projects must be cleaner or locate elsewhere.
- **Shared studies.** When combined data center demand in an area passes a set level, the City commissions one area-wide air and noise study that later applicants build on, so no single developer pays to study everyone else's equipment.
- **Independent review.** Modeling and studies are done by a consultant chosen by the City and paid for by the applicant, the same way the amendment already makes applicants pay for sound studies.

How size is measured

- **Total demand, not just computer load.** Size is the facility's total peak power demand, including cooling and all other equipment, at full buildout. It is the utility service capacity plus any on-site

generation (other than true emergency backup), so power from the grid and power made on site are added together, not compared.

- **Count the whole campus.** All buildings under common ownership or control, including affiliated companies and shared tenants, within one site plan, sharing a substation or power supply, or developed together within 1 mile, count as one data center.
- **Count future phases.** Phases planned or reasonably expected within 10 years count toward the size, and expansions add up over time. An expansion that moves a facility into a higher tier goes through the approval for that tier, covering the whole facility.

What counts as on-site power

- **Ownership doesn't matter.** Power generation that serves a data center directly, rather than through the utility grid, counts as the data center's on-site power, even if a separate company owns it or it sits on a neighboring parcel.
- **Heavy use of backup counts.** Backup generators or fuel cells that run more than 100 hours a year outside real emergencies, for example to help the utility at peak times, are treated as on-site power generation.
- **Changes need approval.** Switching technology or fuel, or adding generating capacity, requires a new approval.

Closing other gaps

- **What the use is called doesn't matter.** The definition covers cryptocurrency mining and high-performance computing as well as data centers, whatever name an applicant gives the project.
- **Agreements, waivers and variances can't skip the basics.** A development agreement under section 1.1.9 can set schedules and other details, but neither it nor a variance or waiver should be able to change a project's tier or skip its public hearing, setbacks, studies or cumulative review.
- **Clear grandfathering.** Projects already approved, or with complete applications on file before the effective date, continue under the rules that applied to them. Later phases or added capacity beyond what was approved follow the new rules.
- **Annexations and utility extensions.** When the City annexes land or extends water or sewer service for a data center, it should require the project to meet these standards.

Sample code language

The following is offered as a starting draft for the City Attorney and staff to refine.

> **1.4.4.f Data Centers.** A use consisting of buildings or structures specifically designed or modified to house networked computers and data and transaction processing equipment, including cryptocurrency mining and high-performance computing, together with associated cooling, electrical, backup power and on-site generation facilities. Data centers are classified by Facility Power Demand as follows:
>
> 1. **Data Center, Small:** Facility Power Demand of 5 MW or less.

> 2. **Data Center, Medium:** Facility Power Demand greater than 5 MW and not more than 50 MW.
>
> 3. **Data Center, Large:** Facility Power Demand greater than 50 MW and not more than 300 MW.
>
> 4. **Data Center, Hyperscale:** Facility Power Demand greater than 300 MW, or any data center served by On-Site Generation.

> **Facility Power Demand.** The total peak electrical demand of a data center at full buildout, including all phases planned or reasonably expected within ten years, being the sum of (a) the total electric service capacity requested from or committed by the utility and (b) the total nameplate capacity of On-Site Generation. All buildings and structures under common ownership or control, including affiliates, within a common site plan, sharing a substation or power supply, or developed as a unified project within one mile shall be counted together as a single data center. Expansions are cumulative; an expansion that increases Facility Power Demand into a higher classification shall require the approval applicable to that classification for the entire facility.
>
> **On-Site Generation.** Electric generation that serves a data center other than through the public utility grid, regardless of ownership or parcel, including emergency generators or fuel cells operated more than 100 hours per year for purposes other than emergencies.

The use table would then list each classification separately, with the districts and approval types shown in the table above.

Other places already do this

Cheyenne would not be the first to sort data centers by size and hold public hearings for the largest ones.

- **Lawton, Oklahoma** splits data centers at 2 MW of peak demand. Facilities at or below 2 MW are permitted in industrial districts. Anything larger is allowed only in the heavy industrial district, after public hearings before both the Planning Commission and the City Council and a binding site plan (City of Lawton).
- **DeKalb County, Georgia** created minor, medium, major and campus tiers. Major data centers and campuses need a Special Land Use Permit and are kept out of office districts (DeKalb County). DeKalb uses floor area rather than megawatts, but the idea is the same.
- **Champaign County, Illinois** has drafted a "Big Data Center" category, triggered by floor area or a power rating, that requires a special use permit from the County Board (draft ordinance).
- **Quincy, Washington** data centers must stay under a combined health risk limit set by the state (Washington Department of Ecology).

Megawatts are a better measure than floor area for Cheyenne. Power demand tracks the things neighbors feel: the number of generators, the amount of cooling equipment, and whether the site needs its own power plant.

Suggested action for the Commission

The staff report lists four alternatives (page 15). We ask the Commission to choose **Alternative 2, approval with modifications**, or, if staff need time to draft the changes, **Alternative 4, postponement**. When the

Commission departs from the staff recommendation, it must give reasons tied to the review criteria. These apply:

- **Health, safety and public welfare (criterion 3).** The amendment addresses noise and construction but does not yet address air quality from large generator banks, on-site power plants, or many facilities clustered together. A size-based definition with public hearings and cumulative review fills that gap.
- **Comprehensive Plan (criterion 1).** Staff acknowledge PlanCheyenne did not anticipate data centers at this scale. Creating size-based categories is an appropriate response to an emerging issue the plan did not foresee.

Requested modifications:

1. Amend 1.4.4.f to classify data centers by Facility Power Demand into Small, Medium, Large and Hyperscale tiers, and define Facility Power Demand and On-Site Generation as above.
2. Amend the use table so Small data centers are permitted by right except near an existing cluster, and Medium, Large and Hyperscale data centers require conditional use approval, with the studies listed for each tier.
3. Require a cumulative impact review for every data center conditional use, set an area-wide limit, and provide for City-commissioned area studies reviewed by an independent consultant.
4. Clarify 5.7.1.e so on-site power generation is reviewed as a power generation use, with its own siting and setback standards, and with any change in technology, fuel or capacity requiring new approval.
5. State that development agreements under 1.1.9, variances and waivers cannot change a data center's tier or waive its hearings, setbacks or studies.
6. Update the dates and the public comment record in the staff report.

Sources

- City of Cheyenne Planning Commission, Staff Report PLTA-26-5 (October 12, 2026; staff update October 19, 2026). Page numbers above refer to this report.
- City of Lawton, Oklahoma. Data center ordinance announcement.
- DeKalb County, Georgia. Substitute Data Centers Text Amendment TA-25-1247647 (January 27, 2026).
- Champaign County, Illinois. Draft Data Center Ordinance (July 29, 2026).
- Washington Department of Ecology. Vantage Data Center health impact assessment, Quincy (2017).
- Cowboy State Daily. Meta formally announces massive $800M data center in Cheyenne (July 2, 2024).
- Epoch AI. Meta Cheyenne data center estimates (updated July 27, 2026).
- Wyoming Tribune Eagle. Panel addresses data center concerns.

Data Center Setbacks: What the Research Supports for Cheyenne

What we're asking for

1. **Data centers that run their own power plant** (gas turbines or engines running around the clock): keep homes, schools, clinics and day cares at least **1 mile** away, and at least **2 miles** on the east side.
2. **Data centers that run fuel cells around the clock:** keep homes, schools, clinics and day cares at least **2,000 feet** away. Fuel cells are far cleaner than turbines, but one running around the clock on natural gas is still a power plant that never shuts off. Fuel cells used only for backup, or running on hydrogen, could be treated more like backup generators.
3. **Data centers with backup diesel generators only:** keep those same places at least **2,000 feet** away.
4. **Require Tier 4 engines for every backup diesel generator.** Tier 4 is the cleanest federal standard for diesel engines. Its filters and catalysts remove most of the soot and nitrogen oxides, but federal rules don't require it for emergency backup, and few states do (Union of Concerned Scientists). With close to 30 buildings in one area, each with its own bank of generators, older engines add up. Tier 4 should be the rule for every new data center here, including those with their own power plants.
5. **Regulate all on-site power generation before more of it arrives.** Meta's planned on-site fuel cell plant has been discussed at public meetings and has prompted another update to the UDC. It has been described as running on hydrogen, with CO2 as its only emission. Those two descriptions should be clarified, because a hydrogen fuel cell does not emit CO2. A fuel cell plant is a cleaner choice than turbines, but the code should not depend on one company's choice. Any continuous on-site power should require a conditional use with a public hearing; state its technology, fuel and size; meet emission limits verified by testing; meet the setback for its technology; and get new approval before adding capacity or switching to turbines or engines.
6. **Look at the whole cluster.** Every data center that needs a public hearing should show its combined impact with nearby data centers and power plants, and the City should set an area-wide limit. Otherwise many mid-size projects can add up to something no one ever reviewed.

Backup diesel is actually dirtier per hour than gas turbines. The difference is how much each one runs. Backup generators run only for short tests and during outages. One recent Wyoming air permit, for example, capped non-emergency running at 100 hours a year. An on-site power plant runs every hour of every day, so its total pollution over a year is far greater. Fuel cells don't burn fuel, so they release far less smog-forming pollution and soot than turbines. That is why they get a smaller setback above. But "clean" should be verified with testing, not assumed, and the approval should lock in the technology and fuel so a site can't quietly switch to turbines later.

Setbacks should be measured from the nearest generator, turbine, fuel cell or exhaust stack to the property line of the home, school, clinic or day care. Backup generators that run more than 100 hours a year outside real emergencies, for example to help the utility at peak times, should be treated as on-site power generation.

Why distance matters

Engine exhaust is strongest right next to the source and thins out over about a third of a mile. But studies of people living near similar industrial sites, especially oil and gas wells, keep finding more asthma, low birth weight, early births and some cancers within about 3,200 feet (1 kilometer), and sometimes farther. California now bans new oil and gas wells within 3,200 feet of homes and schools for exactly this reason. A 2026 analysis focused on data centers estimated health risks reaching at least 0.6 miles from a single facility, and farther when several are grouped together.

A data center that runs its own gas turbines is much closer to a power plant than an office building. That is why we are asking for more than 3,200 feet for those sites.

Why Cheyenne needs extra care

- **We already have a large cluster.** Close to 30 data center buildings operate across about 10 locations, with more under construction and planned. Pollution from nearby sites adds up.
- **The projects the City approves are huge, and they bring their own power.** Meta's Project Cosmo in south Cheyenne, approved through a development agreement with the City, is a 715,000-square-foot building on a site of about 960 acres (Cowboy State Daily). Meta has not published how much power the campus will use at full buildout. Independent satellite-based estimates cover only the buildings visible so far, at about 150 megawatts today and about 200 megawatts by early 2027, so the full 960-acre campus could be far larger (Epoch AI). Meta's planned on-site fuel cell plant has also been discussed at public meetings. And Black Hills Energy's data center tariff requires data centers to provide their own backup power (City of Cheyenne), which usually means banks of diesel generators. The City should require every applicant to disclose its power demand at full buildout.
- **Our wind blows from the west, northwest or southwest about 84% of the time.** Neighborhoods east of a campus will get most of its exhaust, so the east side needs the most distance.
- **Buffers proposed so far are small.** The Orchard Hills plan showed a 500-foot buffer from existing homes, well short of what the research supports.

South Cheyenne shouldn't carry the whole load

At the most recent City Council meeting, Councilman Mark Rinne said, "We aren't picking on south Cheyenne, but that's where the land is." That makes it sound like the city has no choice. It does.

Every approval is a choice. Land being available does not mean the same neighborhoods should keep absorbing the pollution, noise and traffic from one project after another. The Commission can say no, or require the setbacks above, before more projects pile up in the same part of town and impacting health outcomes for the same neighborhoods.

What distance can't fix

The smallest particles of pollution drift across the whole region, so setbacks alone won't stop them. Alongside setbacks, we ask the Commission to support:

- battery backup instead of diesel where possible

- limits on how often backup generators can run for testing
- air monitors east of the largest campuses, installed before they open

Key sources

- California's 3,200-foot setback and the expert panel behind it: CapRadio
- How fast exhaust thins with distance: Karner et al., UC Davis
- Birth outcomes within 1 km of wells: Hill, NBER
- Data center health risk reaching 0.6+ miles: WGN on the CEDS report
- Meta's Project Cosmo, approved by the City: Cowboy State Daily
- Cheyenne wind direction: CIRA, Colorado State University
- Orchard Hills 500-foot buffer: Wyoming Tribune Eagle
- Few states require Tier 4 backup generators: Union of Concerned Scientists
- Wyoming permit capping generator use at 100 hours a year: Riverton Ranger
- Utility tariff requiring data centers to bring their own backup power: City of Cheyenne, Mayor's Minute, Aug. 14, 2026
- Meta Cheyenne campus power estimates: Epoch AI

Full research summary with all sources available on request.

PLTA-26-5 — Proposed Purple Amendments

Mark Moody Page 1

Original page numbers are identified below. Only proposed amendments are included.

Original Page 4 — Section 1.1.8: Public Records; No Confidentiality Agreements

Insert after "City official,": elected City official,

After the clause ending "against the City," add: this shall include any Non-Disclosure Agreement. Any Non-Disclosure Agreement with any corporation, nonprofit agency, economic development agency, chamber of commerce, and/or any other private or public agency is prohibited. Upon passage of this Code, any existing Non-Disclosure Agreement shall be deemed null and void. Any violation of this provision shall constitute a misdemeanor, as defined by applicable law, and shall be subject to applicable criminal penalties. Violations may also result in disciplinary action, up to and including termination of employment for City staff. For elected City officials, violations shall constitute grounds for a demand for resignation, subject to applicable law.

Original Page 6 — Section 1.4.3: Workforce Accommodation Quarters

Add at end of definition: The accommodations shall be at least 1,000 feet from any school, church, or residential area.

Original Page 6 — Section 4.5.3: Water and Sanitary Sewerage

After the sentence ending "proposed development." add: Site plan shall include the estimated monthly water usage.

Original Page 6 — Section 4.5.4: Utilities

After the sentence ending "systems and easements." add: Site Plans shall include estimated monthly electricity watt usage.

Strike out existing sentence: New development shall be required to pay all costs related to construction for required system improvements.

Replace with: New Development shall be required to provide their own power and pay for their own system expansion costs by the appropriate utility company and shall not increases costs to other customers.

Replace "may be required" with: shall be required.

Original Page 7 — Specifically to data centers, this section:

- Requires they provide monthly reports of water usage.

- Requires they provide monthly reports of electricity usage by watts.

- Requires a setback of at least 1,000 feet from any school, church, and residential homes.

Original Page 8 — Section 5.7.1(b): Water

Add at end of subsection b: Every data center building shall submit a monthly water usage rate by gallons.

Original Page 8 — Section 5.7.1(c): Sanitary Sewer

Replace "All data centers shall be approved" with: All data centers may be approved.

Replace the last sentence of subsection c with: Every data center shall be required to have a sanitary sewer system.

Original Page 8 · Section 5.7.1(e): Electricity

Strike out existing first sentence:

All data centers shall demonstrate access to adequate electricity capacity, pursuant to section 4.5.4 of this code.

Replace with:

All data centers shall provide their own power and shall pay for expansion pursuant to section 4.5.4 of this code. The remaining sentence in subsection (e) is unchanged.

Original Page 8 · Section 5.7.1(f): Natural Gas

Add ·Coal· before ·Natural Gas· in the subsection heading:

f. Coal Natural Gas.

Original Page 8 · New Section 5.7.1(g): Windpower and Solarpower

g. Windpower and Solarpower.

If any data center site and campus wish to utilize windpower and solarpower; they shall only be allowed on their property and follow DEQ standards. No small and industrial scale windpower and solarpower shall be allowed to provide electricity for any data center and data center campus. Renumber existing subsection g. Construction Activities as h, and all subsequent subsections accordingly (through original Page 9).

Original Page 9 — Section 5.7.1(i): Agreements

Add at end of subsection:

The City shall make an agreement with any new data center construction to provide community service benefits and allow for a 30 day period of public comment. Renumber original subsection i. Agreements as j. Agreements because of the new subsection

g. Windpower and Solarpower.

Original Page 5 — Section 1.1.9: Development Agreements

Add at end of subsection:

The City shall provide the documentation upon request and shall require public comment on the agreement for 30 days.

Original Page 7 — Section 5.7.1(a)(2): Sound Study Required

Strike out existing text:

All data centers shall submit a sound study showing, at a minimum, the plan view of the site and sound power levels in dBA and dBC in all directions and any potentially affected properties. The sound study shall also include sound levels under emergency operating conditions.

Replace with:

Every data center shall submit a sound study detailing the plan view of the site with maximum sound levels in all directions and all affected properties within a 1,000-foot radius. The sound study shall include an hour-by-hour sound level during normal hours and emergency operating conditions.